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Source: *History of Political Thought*, Autumn 2002, Vol. 23, No. 3 (Autumn 2002), pp. 458-496

.Published by: Imprint Academic Ltd

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RETHINKING FRANZ NEUMANN'S ROUTE TO *BEHEMOTH*¹

Duncan Kelly²

Abstract: Because of its characterization of National Socialism as a form of 'totalitarian monopoly capitalism', many critics of Franz Neumann's pioneering book of 1942, *Behemoth*, have rejected what they see as a crude Marxist analysis of the subject. This not only does little justice to the richness of Neumann's book, it also distorts its central focus. By contrast, this paper suggests that a proper appreciation of the impact of Max Weber in general, and Carl Schmitt in particular, on the development of Neumann's thought permits a more detailed assessment of both the merits and the shortcomings of his most famous analysis.

Introduction and 'Receptions'

If one accepts that the fundamental political opposition in Germany is the economic conflict, that the decisive friend/enemy grouping in Germany is that between labour and capital, it is therefore apparent that under the conditions of such political contradictoriness it is no longer possible to govern through Parliament.³

Franz Neumann is best known as the author of what remains a standard work on the subject of National Socialism.⁴ His *Behemoth*, first published in 1942, is acknowledged today by one of the foremost experts on the subject as a 'masterly' attempt to analyse the National Socialist state.⁵ Indeed, recent works that have attempted to fuse state theory with a historical understanding of the period typically begin with Neumann's analysis.⁶ It has, however, been a long time since Franz Neumann was discussed in any detail in a major English-language journal concerned with the history of political thought. Because of Neumann's association with the SPD, the *Institut für Sozialforschung*, and because of his characterization of National Socialism as

¹ My thanks to Andrew Gamble, Mike Kenny and Keith Tribe for their comments on earlier versions of this paper, and to Iain Hampsher-Monk, Gail Prosser and an anonymous reviewer of the journal for further help. I would also like to acknowledge the assistance of The British Academy.

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³ Franz Neumann, Letter to Carl Schmitt, 7 September 1932, *Reform und Resignation: Gespräche über Franz Neumann*, ed. Rainer Erd (Frankfurt am Main, 1985), pp. 79 f.

⁴ Franz L. Neumann, *Behemoth: The Structure and Practice of National Socialism, 1933–1944* (New York and Evanston (1942), 1966).

⁵ Ian Kershaw, *The Nazi Dictatorship* (London, 1993), p. 20.

⁶ Jane Caplan, 'National Socialism and the Theory of the State', in *Re-evaluating the Third Reich*, ed. T. Childers and J. Caplan (New York, 1993), pp. 101 f; Jane Caplan, *Government Without Administration* (Oxford, 1990), pp. 321–8.

HISTORY OF POLITICAL THOUGHT. Vol. XXIII. No. 3. Autumn 2002

a form of 'totalitarian monopoly capitalism',⁷ *Behemoth* is widely perceived to be either a Marxist or an economic analysis, or both — and this is what critics have homed in on. But, as Keith Tribe most recently has reiterated, Neumann's personal trajectory, and in particular his legal studies before he wrote *Behemoth*, are largely ignored in most commentary, with the result that the real architectonic — in Kant's sense of the term — of this most famous book is widely misunderstood.⁸ Legal analysis is the centrepiece of *Behemoth*, and 'underscores the lasting thematic core of the book, which concerns the problem of order and the power of coercion in modern society'.⁹ Such legal analysis can be seen to stem not only from the influence of his 'social-democratic' teachers, such as Weimar's most famous labour lawyer Hugo Sinzheimer, but also from his engagement with the work of Carl Schmitt in particular, and Max Weber in general.¹⁰

Appropriately, the crucial position of the state in securing political order is clearly stated in the Preface to *Behemoth*. Equally, however, both the Preface and the title suggest that the polycratic National Socialist regime is inherently irrational and does not in fact represent a 'state'; rather, writes Neumann, the *Behemoth* is an orderless, non-state 'system'.¹¹ This account, puzzling at first blush, can be properly understood only in terms of Neumann's conceptualization of the state in general, and his examination of National Socialism in particular. Moreover, given the importance of *Behemoth* for our understanding of National Socialism, this essay attempts to show how Neumann's analysis can be seen as the culmination of a fruitful — if not unproblematic — acquisition and transformation of the language of political-legal thought derived primarily from Schmitt, and secondarily from Weber. This makes for a richer understanding of the structure and argument of *Behemoth* itself. It also shows that work to be continuous with much of his prior thinking, rather than forming the basis for a 'new' appreciation of the autonomy of the political after the publication of *Behemoth* in 1942, as Martin Jay in particular has suggested.¹²

Background to the Sovereign State

Born in 1900 in the Polish-German border town of Kattowitz, Neumann began his legal studies at the University of Breslau in 1918, moving between

⁷ Neumann, *Behemoth*, p. 261.

⁸ The most well known selection of his work in English, *The Democratic and Authoritarian State*, ed. Herbert Marcuse (New York, 1957) (hereafter *DAS*), includes none of Neumann's Weimar output, and only two selections predate 1945.

⁹ Keith Tribe, 'Capitalism, Totalitarianism and National Socialism', in K. Tribe, *Strategies of Economic Order* (Cambridge, 1995), p. 170.

¹⁰ Peter Intelmann, 'Zur Biographie von Franz L. Neumann', 1999, 5 (1990), pp. 14–52, pp. 19 f.

¹¹ Neumann, *Behemoth*, p. xii.

¹² Martin Jay, *The Dialectical Imagination* (Berkeley (1976), 1996), p. 118.

Leipzig and Rostock during the winter and summer semesters. It was, however, his move in 1919 to the new University of Frankfurt am Main, where he would take his first legal exams in 1921, that provided the catalyst for his move towards the SPD and highlighted his capacity for practical action.¹³ Here, for example, he established the first socialist student group with Leo Löwenthal and Ernst Fraenkel. Although Neumann fought on the side of the soldiers' and workers' councils of 1918 and 1919, his revolutionary political impetus ended there. From this point onwards, as Intelmann observes, he had made the decisive move towards the SPD as the body best placed to instigate meaningful political change — a partnership that continued formally until 1933, and then in exile.¹⁴ By 1923 he had also recorded what would remain his general assessment (*Haltung*) of Marxism.¹⁵ In his doctoral dissertation of that year, *Rechtsphilosophische Einleitung zu einer Abhandlung über das Verhältnis von Staat und Strafe*, he suggested that historical materialism is a prize theoretical method (*eine Methode der Erkenntnis*), but that it cannot offer an adequate guide to political action.¹⁶

After completing his studies, he worked for three years as an assistant to Hugo Sinzheimer, passing his *Assessorexamen* in 1927. He immediately set up in private practice with Fraenkel — a partnership that would last until his 'emigration' — and they quickly built up a large caseload. During this period, Neumann wrote much more than is typically acknowledged — often on legal and trade union issues — and lectured alongside Hermann Heller and Carl Schmitt at the *Hochschule für Politik* in Berlin. He also worked closely with the SPD, soon becoming its legal adviser.¹⁷ His desire to fuse practice with a corresponding interest in legal theory, however, was already clear from the first dissertation, and in this regard there are two main points to observe. First, Neumann adduced a positive-legal (*positivrechtliche*), 'rational' relationship between state, punishment (*Strafe*) and democracy.¹⁸ Second, the dissertation laid the preparatory legal foundations (*Grundlagen*) with which he could later investigate such relationships (principally those pertaining to the state and democracy) sociologically. Despite Jay's accusation of infidelity towards the autonomy of politics, Neumann was certainly not a crude determinist.¹⁹

¹³ Rolf Wiggerhaus, *The Frankfurt School*, trans. Michael Robertson (Oxford (1986), 1995), p. 224.

¹⁴ Intelmann, 'Zur Biographie von Franz L. Neumann', p. 15.

¹⁵ *Ibid.* Cf. Neumann, *Behemoth*, pp. 11–12; Peter Intelmann, *Franz L. Neumann: Chancen und Dilemma des politischen Reformismus* (Baden-Baden, 1996), p. 93.

¹⁶ Intelmann, 'Zur Biographie von Franz L. Neumann', p. 19. Cf. Franz Neumann, 'Economics and Politics in the Twentieth Century' (1951), *DAS*, p. 263.

¹⁷ See Tribe, 'Capitalism', pp. 172 f.; Intelmann, 'Zur Biographie von Franz L. Neumann', p. 21; Wiggerhaus, *Frankfurt School*, p. 224.

¹⁸ Intelmann, *Franz L. Neumann*, p. 85.

¹⁹ Intelmann, 'Zur Biographie von Franz L. Neumann', p. 15. See also Franz Neumann, *The Rule of Law* (Leamington Spa, 1986), p. 16. This is a publication of

For these foundations, as was also the case with Schmitt's thought, particularly during the Weimar Republic, the method of analysis owed much to both Max Weber and Hans Kelsen.²⁰ But whereas Schmitt denied that the sociological-political and 'legal' elements of law are in fact distinct, an opposition to Kelsen in particular and legal positivism in general that developed strongly after the First World War,²¹ Neumann found Kelsen's famous separation of legal science from 'practical' questions helpful.²² He reiterated this point some thirteen years later in his second dissertation, suggesting that 'in this separation of the categories of essence and existence, of ethical norm and legal norm, lies the merit of Kelsen's pure theory of law'.²³ This was a continuation of the neo-Kantian themes pursued in the first dissertation, possibly showing the influence of his supervisor, Max Ernst Mayer.²⁴ Neumann utilized the separation in a significant way, though: distinguishing between ideal-type conceptual discussion, and sociological investigation of culturally 'significant' (*deutend*) developments is typically Weberian, and Neumann, as Weber had before him, wrote that the state is not simply — *pace* Kelsen — synonymous with law, or more specifically, with the legal order (*Rechtsordnung*).²⁵

According to Weber, the state is not only the most important and powerful political association; it is also a means to an end. For Weber, the central purpose of the modern state should be to fulfil the 'objective' cultural tasks of the

Neumann's second doctoral dissertation, written under Harold Laski and Karl Mannheim, *The Governance of the Rule of Law. An Investigation into the practical theories, the legal system and the social background of the contemporary society*, London School of Economics (1936).

²⁰ Intelmann, 'Zur Biographie von Franz L. Neumann', pp. 16, 18. Cf. Reinhard Mehring, 'Carl Schmitts Lehre von der Auflösung des Liberalismus: Das Sinngedächtnis der "Verfassungslehre" als historisches Urteil', *Zeitschrift für Politik*, 38 (1991), pp. 200–16, pp. 213 ff. A detailed defence of my position regarding Schmitt's proximity to Weber, which cannot be dealt with here, is provided in a forthcoming book, D. Kelly, *The State of the Political. Conceptions of Politics and the State in the Thought of Max Weber, Carl Schmitt and Franz Neumann*.

²¹ Carl Schmitt, *Political Theology* (1934 edition), trans. G. Schwab (Cambridge, MA (1922), 1985), pp. 10, 15. Cf. Peter Caldwell, *Popular Sovereignty and the Crisis of German Constitutional Law* (Durham and New York, 1997), pp. 101–2.

²² Intelmann, 'Zur Biographie von Franz L. Neumann', p. 18. Cf. Neumann, *The Rule of Law*, p. 237. Kelsen suggested that with his master concept of the 'reconstructed' legal norm (*Rechtssatz*), the origin of every legal norm could be traced, 'until the highest level of norms in the legal system is reached, [that is] the level of the constitution'. The validity of 'positive law norms' beyond the constitution can then simply be assumed. See Stanley Paulson, 'The Neo-Kantian Dimension of Kelsen's Legal Theory', *Oxford Journal of Legal Studies*, 12 (1992), pp. 311–32, pp. 325–6.

²³ Neumann, *The Rule of Law*, p. 13.

²⁴ Cf. Intelmann, *Franz L. Neumann*, p. 93, n. 45.

²⁵ Intelmann, 'Zur Biographie von Franz L. Neumann', p. 18; Weyma Lübke, *Legitimität kraft Legalität* (Tübingen, 1990), esp. pp. 26–33.

nation — it is not an object to be passively worshipped.²⁶ It was also Neumann's view that the state is a tool to be used. Nevertheless, as Weber had also always made clear, the state is a relationship of domination or rule (*Herrschaftsverhältnis*), an argument that builds upon his more general claim that every (*jede*) human relationship in fact contains an irreducible element of domination or *Herrschaft* within it.²⁷ This also illustrates Weber's incorporation of the work of his famous Heidelberg friend and colleague, Georg Jellinek, whose empirical-sociological, or *Soziallehre*, approach to the state he strongly supported. Indeed, Jellinek's discussion of the state as the 'strongest social power factor' clearly resembles Weber's account, especially in his famous lecture on the vocation of politics.²⁸ However, Jellinek's analytical split between the legal and empirical-sociological elements of the state convinced neither Weber nor indeed Kelsen, though for different reasons.²⁹ Although Weber fully appreciated Jellinek's distinction — made with the 'cool objectivity of the man of science'³⁰ — between legal and political change, for him questions of the legality and the legitimacy of the political order had always to be linked to broader typologies of social action and political rule.³¹ This idea,

²⁶ Max Weber, 'The Meaning of "Ethical Neutrality" in the Sociological and Economic Sciences' (1917), in *The Methodology of the Social Sciences*, ed. and trans. Edward A. Shils and Henry A. Finch (Glencoe, IL, 1949), pp. 46–7; Max Weber, 'The National State and Economic Policy' (1895), in *Weber: Political Writings*, ed. Peter Lassmann and Ronald Spiers (Cambridge, 1994) (hereafter *Political Writings*), p. 17.

²⁷ Max Weber, Letter to Robert Michels, 21 December 1910, in *Max Weber Gesamtausgabe II/6, Briefe 1909–1910*, ed. M. Rainer Lepsius and Wolfgang J. Mommsen, with Birgit Rudhard and Manfred Schön (Tübingen, 1994), p. 761; Max Weber, 'The Profession and Vocation of Politics' (1919), in *Political Writings*, pp. 310 f.

²⁸ Cf. Georg Jellinek, *Allgemeine Staatslehre* (Berlin (1900), 1921), p. 93; Weber, 'Vocation of Politics', p. 311.

²⁹ Cf. Andreas Anter, 'Georg Jellineks wissenschaftliche Politik. Positionen, Kontexte, Wirkungslinien', *Politische Vierteljahresschrift*, 39 (1998), pp. 503–26; Gangolf Hübinger, 'Staatstheorie und Politik als Wissenschaft im Kaiserreich: Georg Jellinek, Otto Hintze, Max Weber', in *Politik, Philosophie, Praxis. Festschrift für Wilhelm Hennis zum 65. Geburtstag*, ed. H. Maier, U. Matz, K. Sontheimer and P.L. Weinacht (Stuttgart, 1988), pp. 143–61; Kenneth Dyson, *The State Tradition in Western Europe* (Oxford, 1980), p. 175. I also discuss the relationship in more detail in Kelly, *The State of the Political*. For Kelsen's disagreements, see Hans-Joachim Koch, 'Die staatsrechtliche Methode im Streit um die Zwei-Seiten Theorie des Staates (Jellinek, Kelsen, Heller)', in *Georg Jellinek — Beiträge zu Leben und Werk*, ed. S. Paulson and M. Schulte (Tübingen, 2000), esp. pp. 377–84.

³⁰ Georg Jellinek, *Verfassungsänderung und Verfassungswandlung. Eine Staatsrechtliche-politische Abhandlung* (Berlin, 1906), p. 44; Anter, 'Georg Jellineks wissenschaftliche Politik', p. 503.

³¹ Lübke, *Legitimität kraft Legalität*, p. 64. See also Max Weber, '“Objectivity” in Social Science and Social Policy' (1904), in *Methodology*, ed. and trans. Shils and Finch, p. 99, 'Die “Objektivität” sozialwissenschaftlicher und sozialpolitischer Erkenntnis',

that law is to some extent a 'function' of society, also represents a foundational assumption of Neumann's writings.

When these general considerations are borne in mind, therefore, Neumann's proximity to both Weber and Schmitt, and hence his proper place within the particularly strong German traditions of both *Allgemeine Staatslehre* and *Staatsrechtslehre*, is clear in the following summary of his position written in 1936:

I call every sociologically sovereign institution a state. Therefore the state cannot, according to this definition, be a legal order (Hans Kelsen): neither can it be a fiction, nor an abstraction. For in all these three cases we could not speak of state sovereignty but only of the sovereignty of organs of the state. *In this definition it is further evident that state and society are both quite distinct phenomena.* The specific relationship existing between state and society is, formally speaking, that the acts of the sovereign state relate to the society and that these are at the same time caused by the social factors operating in that society.³²

He continues:

We have defined the state as a sovereign institution. Sovereignty contains as a legal moment the original right of the sovereign to issue general norms and individual norms (commands, decisions). In consequence of this dualism of the right of issuing general and individual norms there exists the possibility of an antagonism between the then existing series of general norms and the then issued individual norms . . . Where the state in case of such a conflict has the right in the interests of its 'self-maintenance' to break through partially the series of norms by means of individual norms, or even to suspend the whole series, a situation arises which we do not intend to discuss here [surely an allusion to Schmitt's *Die Diktatur*]. Alone important for us here is that [the] state has done this thing, and is continually doing it. In [such] cases the exercise of sovereignty is a power decision in the sense of Carl Schmitt.³³

As Weber had suggested, the modern bureaucratic state possesses the monopoly of legitimate violence within a given territory and functions, separate from society, *sine ira et studio*. In this it is clearly 'sociologically sovereign' in Neumann's terms, and the highest form of political association. However, although the modern state is the sole source of legitimate law, and hence of (rational-legal) legitimate authority in general, as already implied, it cannot be seen as being based on some 'ideal' conception of the legal order.³⁴ Specifically, the state can properly be understood only in terms of its empirical *Gesammelte Aufsätze zur Wissenschaftslehre*, ed. Johannes Winckelmann (Tübingen, 1973), pp. 200 f.

³² Neumann, *The Rule of Law*, p. 23. Emphasis added.

³³ *Ibid.*, pp. 23 f. Cf. p. 26.

³⁴ Max Weber, *Economy and Society*, trans. C. Wittich and G. Roth (2 vols., Berkeley, 1978), Vol. 2, p. 666.

and historical development.³⁵ Correlatively, its legitimacy can be explained only in terms of the relationship between a 'belief' in legitimacy on the part of the ruled, the claims to legitimacy made by the legal-political order, and the actual forms of obedience that underpin the different types of *Herrschaft* that Weber famously identified.³⁶ This historical analysis, framed by ideal-type heuristic definitions of central terms, is a particular feature of the writings of both Weber and Schmitt, and it is a method of working that is carried on by Neumann. The fact that Neumann writes of Schmitt's discussion of sovereignty after three years of Hitler's rule, however, illustrates an engagement that remains under-explored, though is still more often mentioned than the uneasy rumblings produced by the relationship between Schmitt and Walter Benjamin, for example.³⁷ Furthermore, the best way of exploring this relationship is to consider Neumann's assessment of the Weimar constitution itself, the terrain on which Schmitt's argumentation in particular is absolutely central to his thinking.

The 'Decisionless' Constitution and Monopoly Capitalism

The crux of the debate about the Weimar constitution, as outlined by Schmitt and continued by Neumann, revolved around a discussion of the nature of the constitution in particular, and the concept of sovereignty in general. However, Schmitt's understanding of the constitution is highly specific and existential, and it might be helpful here to offer an outline of it.

For Schmitt, 'constituent power' — which is unified political will — forms the (existential, rather than norm-based) foundation of any 'constitution'. Constituent power therefore defines the boundaries of the concrete decisions made about forms of political existence, and shapes the nature of political order.³⁸ Moreover, his claim that the legitimacy of the modern democratic state lies in its specific position as the 'political *unity* of a people' — a unity that can also be achieved through representation by a leader, for example³⁹ — means that, for Schmitt, 'constitution' and state are synonymous.⁴⁰ The legitimacy of the Weimar constitution, then, stemmed from the revolutionary

³⁵ For a helpful discussion, see Roland Axtmann, 'The Formation of the Modern State: A Reconstruction of Max Weber's Arguments', *History of Political Thought*, XI, (1990), pp. 295–311.

³⁶ Cf. David Beetham, *The Legitimation of Power* (Basingstoke, 1991); Stefan Breuer, 'Das Legitimitätskonzept Max Webers', *Die Begründung des Rechts als historisches Problem* (Schriften des historischen Kollegs Kolloquien, 45), ed. D. Willoweit (Oldenbourg, 2000), esp. pp. 10 f.

³⁷ See, however, Horst Bredekamp's superb essay, 'From Walter Benjamin to Carl Schmitt via Thomas Hobbes', trans. M. Thorson Hause and J. Bond, *Critical Inquiry*, 25 (1999), pp. 247–66.

³⁸ Carl Schmitt, *Verfassungslehre* (Berlin (1928), 1997), pp. 76 f.

³⁹ *Ibid.*, pp. 90, 212. Emphasis added.

⁴⁰ *Ibid.*, pp. 3 f., 7.

constituent power of the people, for the constitution was formed in the wake of the 1918 revolution. The constitution, *qua* state, represents the political unity of the people. However, the concept that best unlocks these interrelated ideas is that of sovereignty. Schmitt's argument in this respect, as outlined most famously and clearly in *Political Theology*, suggests that the sovereign entity is defined by its ability to 'decide' upon the 'state of exception'.⁴¹ Underpinning this is the related assumption that 'for a legal order to make sense, a normal situation must exist, and he is sovereign who definitively decides whether this normal situation actually exists'.⁴² The sovereign figure, therefore, by deciding on the 'exceptional' situation, gives meaning to the argument that the exceptional situation produces the 'order' of the norm.

Under the Weimar constitution, however, the whole issue of sovereignty was confused. Article 48, for example, gave the *Reichspräsident* sovereign emergency powers to 'abrogate' the constitution if need be, that is, to act as a dictator. Simultaneously in Article 76 it was claimed, for example, that the constitution could be amended by legislation. Given Schmitt's highly specific understanding of the constitution, he thought these attempts to legislate in procedural terms for decisions that by their very nature cannot be legislated for confused the question of sovereignty, rendered 'dictatorship . . . subordinate to the sovereign constitution', and actually threatened the legitimacy of the constitution itself.⁴³ Furthermore, although Schmitt's focus on the existential basis of the constitution and state put forward a powerful critique of legal positivism, as was common in legal discussions under Weimar, his argument also formed a more general attack on liberalism.⁴⁴ For Schmitt, liberal belief in procedural neutrality and the rule of law treats the political sphere (i.e. the state) as if it were just another association among many to be regulated and controlled. Against this, in a pointed critique of contemporary pluralist social theory, he suggested that the specificity of the political, and hence the state, can actually be found in the particular degree of intensity it involves, which is altogether alien to other spheres. This intensity stems, as he had earlier argued, from the state's central role in distinguishing between 'friends' and 'enemies', and in gauging levels of antagonism between them.⁴⁵ The two major threats to the unity of the contemporary state were therefore pluralism and liberalism, and his broad criticisms of the Weimar constitution as just outlined provide a necessary initial context within which to locate Franz Neumann's

⁴¹ For the rapid development and impact of Schmitt's arguments regarding sovereignty and emergency constitutional powers, see John P. McCormick, *Carl Schmitt's Critique of Liberalism* (Cambridge, 1997), esp. pp. 141–53.

⁴² Schmitt, *Political Theology*, p. 13.

⁴³ Caldwell, *Popular Sovereignty*, p. 107.

⁴⁴ *Ibid.*, pp. 82 f.

⁴⁵ Carl Schmitt, 'Staatsethik und pluralistischer Staat', *Kant-Studien*, 35 (1930), pp. 28–42, esp. pp. 36–7; Carl Schmitt, *The Concept of the Political* (1932 edition), trans. George Schwab (Chicago (1927), 1996), esp. pp. 19, 43, 44.

constitutional discussions. Neumann too saw in pluralism the 'disease of the Weimar Republic'.⁴⁶

In 1937, Neumann provided a clear illustration of his analysis of Weimar that is of particular relevance here, for it shows the real extent of his immersion in Schmitt's arguments. In 'The Change in the Function of Law in Modern Society', Neumann wrote of the imbalance between the first and second parts of the Weimar constitution.⁴⁷ Examining the latter half of the document, he argued that 'the old classical and the new social rights are juxtaposed in an unrelated manner'. Therefore, he thought it 'justifiable to say that the Weimar constitution was a *decisionless constitution*'.⁴⁸ Such a formulation immediately recalls Schmitt's writings, and makes a more general point about the nature of the constitution, one which it is important to clarify here, for it was Schmitt who famously characterized elements of the second half of the constitution as a '*dilatorisch Formelkompromiß*'. He thought those articles relating to the legal relationship between church and state, for example, a typically liberal fudge. Furthermore, according to Schmitt the economic sections of the constitution (largely drawn up by Sinzheimer) were also an unhappy mixture of both capitalism and socialism, and illustrated a compromise on basic values towards which no true constitution could afford to be neutral.⁴⁹ Again, liberal faith in the neutrality of the rule of law is seen as an attempt to evade the necessity of the political decision through compromise and negotiation.⁵⁰ Indeed, the continual drain on state unity brought about by the disputes between political parties based on fragmented, sectional interests, for example, had exemplified these problems for Schmitt during Weimar in a particularly acute form.⁵¹ Therefore, when Neumann describes the Weimar

⁴⁶ Neumann, *Behemoth*, p. 523.

⁴⁷ Part I of the Weimar Constitution detailed the 'Organisation and Functions of the Reich', detailing the major governmental powers and administrative tasks and divisions of the Republic, whilst Part II concerned the 'Fundamental Rights and Duties of Germans' in terms of the individual, the community, religion and religious association.

⁴⁸ Franz Neumann, 'The Change in the Function of Law in Modern Society' (1937), *DAS*, p. 50. The Weimar Constitution is translated in *The Democratic Tradition*, ed. Elmar M. Hucko (Leamington Spa, 1987), pp. 149–90. Neither Hugo Preuss (assigned the task of drafting the constitution) nor Max Weber wanted to incorporate 'rights' into the constitution at all. See Caldwell, *Popular Sovereignty*, p. 73.

⁴⁹ Cf. Schmitt, *Verfassungslehre*, esp. pp. 32–5; Carl Schmitt, 'Legalität und Legitimität' (1932), in C. Schmitt, *Verfassungsrechtliche Aufsätze aus den Jahren 1924–1954. Materialien zu einer Verfassungslehre* (Berlin (1958), 1985), pp. 263–74; Vittorio Hösle, 'Carl Schmitts Kritik an der Selbstaufhebung einer Wertneutralen Verfassung in *Legalität und Legitimität*', *Deutsche Vierteljahrsschrift für Literaturwissenschaft und Geistesgeschichte*, 61 (1987), pp. 1–34, esp. pp. 6 ff.

⁵⁰ See also Carl Schmitt, 'The Age of Neutralizations and Depoliticizations' (1930), trans. John P. McCormick and Matthias Konzett, *Telos*, 96 (1993), pp. 130–42.

⁵¹ See Arnold Brecht, 'Die Auflösung der Weimarer Republik und die politische Wissenschaft', *Zeitschrift für Politik*, 2 (1955), pp. 291–308, p. 296.

constitution as 'decisionless', he is not only referring to the problematic relationship between what he terms the 'old classical' and the 'new social' rights, he is also questioning the source of sovereignty within the constitution, though in such a way that will nevertheless lead him to challenge the import of Schmitt's fears about constitutional change based on an opposition between constitutional legitimacy (unified, original political will) and legality (procedural neutrality). To recall, Schmitt argues that:

the distinction between the 'written and unwritten constitution' is in truth the opposition of the constitution (in its positive sense) and the constitutional law which is based on it [*zugrunde lag*].⁵²

Neumann, however, does not think that constitutional amendments drastically affect the very being of the constitution itself, and argues that Schmitt's account simply makes it impossible to undertake modest political change through constitutional means. For instance, as Caldwell has suggested, Schmitt's thought in this regard seems incapable of understanding, let alone theorizing, reformist socialism.⁵³

In truth, however, the basic laws, taken together, are no longer construed in terms of liberties which are anterior to the state. None of the definitions that are to be found in the second part of the Constitution contain a statement that such and such a law (*Recht*) is inviolable or holy. Even property is not guaranteed in terms of an inviolable basic law . . . but is instead 'guaranteed by the Constitution'. In just the same way, all the basic laws are secured in terms of the Constitution, that is to say, *solely by its second part*. Consequently, the extraordinarily stimulating theory of Carl Schmitt is in error when he claims that the *specific* resolutions that the German people have embodied in their constitution (and, in particular, the political resolutions anchored in the basic laws) cannot be altered, since this would result in the constitution abolishing itself . . . The theories of Carl Schmitt compel revolution if a development of the Constitution is desired.⁵⁴

The central problem for Neumann is that there is a tension between the essence of the Weimar constitution and how it has come to be interpreted and implemented. In this respect, another side of his argument is particularly

⁵² Schmitt, *Verfassungslehre*, p. 386. Ernst-Rudolf Huber, 'Verfassung und Verfassungswirklichkeit bei Carl Schmitt', in E.-R. Huber, *Bewahrung und Wandlung* (Berlin, 1972), p. 19, characterizes this as the central problem (*Kernproblem*) of every constitutional theory.

⁵³ Caldwell, *Popular Sovereignty*, p. 227, n. 109.

⁵⁴ Franz L. Neumann, 'The Social Significance of the Basic Laws in the Weimar Constitution' (1930), in *Social Democracy and the Rule of Law: Otto Kirchheimer and Franz L. Neumann*, ed. Keith Tribe, trans. K. Tribe and L. Tanner (London, 1987) (hereafter *SD*), pp. 29 f. Emphasis added. Cf. Jürgen Bast, *Totalitärer Pluralismus: Zu Franz L. Neumanns Analysen der politischen und rechtlichen Struktur der NS-Herrschaft* (Tübingen, 1999), p. 77, n. 102, who — also extraordinarily — calls this a 'polemic' against Schmitt.

important. This concerns his understanding of the contemporary period as an era of 'monopoly capitalism'. In fact, he suggests that 'during the period of monopoly capitalism, *which in Germany began with the Weimar republic*, legal theory and legal practice have undergone a decisive change'.⁵⁵ The principal question he poses, however, is to what extent monopoly capitalism actually corresponds with the 'personal and legal preconditions for the capitalist economy'.⁵⁶ Where Schmitt is searching for the sources of political order broadly understood, Neumann is examining the contemporary period to explore the necessary conditions for a specifically capitalist order.⁵⁷ Furthermore, although suggesting that the aforementioned preconditions (private property, freedom of contract and trade, the right of inheritance) no longer exist for private entrepreneurs under monopoly capitalism, he nevertheless argued that 'all legal principles . . . are secured now as before'.⁵⁸ The crucial development, therefore, is that 'capitalist rights of freedom . . . have lost their meaning in the context of the economy of monopoly capitalism'. These rights, never simply legal in their implications, retain their valid original meaning only in terms of the 'free market', because 'in monopoly capitalism such freedom no longer exists in the relation between the monopolist and the non-monopolist, for the monopolist dictates'.⁵⁹ Under modern conditions, therefore, 'expressions of liberty in the capitalist economy lose their significance', representing instead the 'masking functions' of the 'freedom of contract'.⁶⁰ According to this analysis, the market 'is subordinated to the interventionist activity of the state on the one side and to the power of monopolists on the other, so that in many areas the self-regulating property of the market is suppressed'. Freedom of contract is simply a 'formality', because a monopolist or government bureaucracy has replaced the private entrepreneurs.⁶¹ Simultaneously, the classical liberal state of the nineteenth century, which has become ever more interventionist, has 'blurred the distinction between state and society' and therefore threatens the 'sovereign state' as Neumann understands it.⁶² Yet, as previously suggested, it is not simply the case that there is a disjuncture between 'legal norm and substratum in the field of economic law, but also . . . [that] an equal contradiction exist[s] between the

⁵⁵ Neumann, 'The Change in the Function of Law in Modern Society', *DAS*, p. 47. Emphasis added.

⁵⁶ Franz Neumann, 'On the Preconditions and the Legal Concept of an Economic Constitution' (1931), *SD*, p. 44. Cf. Harold James, *The German Slump* (Oxford, 1986), p. 123; Bast, *Totalitärer Pluralismus*, pp. 205–13.

⁵⁷ Tribe, 'Capitalism', p. 178.

⁵⁸ Neumann, 'Preconditions', *SD*, p. 46.

⁵⁹ *Ibid.*, p. 47.

⁶⁰ *Ibid.*, pp. 48 f. Cf. Neumann, 'The Change in the Function of Law in Modern Society', *DAS*, pp. 63–5, on the 'reification' of property, and Neumann, *Behemoth*, pp. 448 f.

⁶¹ Tribe, 'Capitalism', p. 174.

⁶² See Carl Schmitt, *Der Hüter der Verfassung* (Tübingen, 1931), pp. 78 f.

norms of constitutional law and the concrete contemporary situation of the constitution',⁶³ the elements of which are discussed in more detail below. The principal questions of interest to Neumann can nevertheless be outlined thus: Why has the constitution been interpreted and implemented in the way that it has? What does this mean in general for the political position he prescribes? Is the contemporary state capable of fulfilling the tasks he thinks it should be geared towards?

Strong Social Democracy, *Rechtsstaat* and the Weak 'Total State'

Focusing on Article 109 of the constitution, which states that 'all Germans are equal before the law', Neumann distinguishes between *negative* and *positive* notions of the concept of equality. In its negative guise, equality is the typically 'liberal' presentation of the freedom to make contracts, to acquire property and so on. The positive element of equality for Neumann, however, is something more. It implies that not only is 'each . . . provided with the legal potential to share the goods of society, but it [positive equality] can also offer the real possibility implied in the demand'. Furthermore, it is also his contention that just as there are two sides to the concept of equality, so too has democracy a *Doppelnatur*. He suggests not only that 'equality before the law is the founding principle of democracy', but also that 'at the basis of the idea of democracy there lies the conception of popular sovereignty, a conception which posits an identity of ruler and ruled'.⁶⁴ Besides being precisely the same as Schmitt's formulation of democracy and popular sovereignty,⁶⁵ however, Neumann — also paralleling Hugo Sinzheimer — argues that '*bourgeois* democracy [the *Rechtsstaat*] corresponds with the negative concept of equality', whilst the actions of a '*social* democracy' concern 'the promotion of the rise of the working class'.⁶⁶ Moreover, the negative principle of equality simply cannot be comparable with the principle of equality outlined in Article 109 of the constitution, because 'the Constitution is the creation of the working class', and the equality it is concerned with is that of the 'labouring person'.⁶⁷

By implying that a social conception of democracy should concern itself with the positive conception of equality, Neumann advocates a 'volitional'

⁶³ Neumann, 'The Change in the Function of Law in Modern Society', *DAS*, p. 49.

⁶⁴ Neumann, 'Social Significance', *SD*, p. 32; William Scheuerman, *Between the Norm and the Exception. The Frankfurt School and the Rule of Law* (Cambridge, MA, 1994), pp. 48 f.

⁶⁵ Carl Schmitt, *The Crisis of Parliamentary Democracy* (1926 edition), trans. Ellen Kennedy (Cambridge, MA (1923), 1985), p. 25; Schmitt, *Verfassungslehre*, pp. 226 ff.

⁶⁶ Scheuerman, *Norm and Exception*, pp. 32 f. Emphasis added. Cf. Intelmann, *Franz L. Neumann*, pp. 71 ff., 158.

⁶⁷ Neumann, 'Social Significance', *SD*, p. 37; Volker Neumann, 'Kompromiss oder Entscheidung? Zur Rezeption der Theorie Carl Schmitts in den Weimarer Arbeiten Franz L. Neumanns', *Recht, Demokratie und Kapitalismus*, ed. J. Perels (Baden-Baden, 1984), pp. 69 f.; Intelmann, *Franz L. Neumann*, p. 128.

theory of action. He argues that a precondition of the social democracy he supports is material equality and that such equality can be properly brought about and maintained through the actions of the state, in some form of post-capitalist society.⁶⁸ It is this idea of using the state as a means to an end that provides a crucial link back to Weber, though as Neumann (borrowing largely from Schmitt) would point out, under contemporary conditions it was not at all clear that the state was up to this task. Nevertheless, given that Neumann understood equality under Weimar to be 'negative' equality, it is worthwhile examining the similarities once again between Neumann and Schmitt concerning the nature of the *Rechtsstaat*.

For Schmitt, the development of the *Rechtsstaat* corresponds to the rise of a modern, bourgeois and individualist political order.⁶⁹ Its ambivalence centres on the question of whether the individual rights it purports to protect are to be created or presupposed, in much the same way as liberal constitutionalism, for Schmitt, confuses the question of how a constitution is itself constituted.⁷⁰ Nevertheless, Neumann keenly observes the positive 'propaganda' that accrued to the bourgeoisie by 'only calling its state a *Rechtsstaat*'.⁷¹ Thus, writing in 1934 under a pseudonym, he lamented the fact that both his and Hermann Heller's attempts to promote the ideals of a *social Rechtsstaat* 'based on the old ideals of 1789' had failed under criticism from 'both socialist (Otto Kirchheimer) and bourgeois (Carl Schmitt, Albert Hensel) camps'.⁷² His understanding of the *Rechtsstaat* suggests that it 'only develops clearly if it is considered in the context of the economic, political and philosophical system of liberalism'. Therefore, general law and the 'division of powers' — which for Neumann represents not only a differentiation of powers as Montesquieu had elaborated, but also a distribution of powers between social groups — within the *Rechtsstaat* have 'the sole and exclusive aim of securing freedom and property'.⁷³ A truly progressive development of the generality of law, therefore, would be to complete the process of legal rationalization begun under the *Rechtsstaat* in order to achieve the positive notion of equality he supports. Otherwise, as he makes clear in discussing 'competitive' capitalism:

⁶⁸ See Chris Thornhill, *Political Theory in Modern Germany* (Oxford, 2000), p. 96.

⁶⁹ Schmitt, *Verfassungslehre*, esp. pp. 125–33, 138–57. Cf. Ernst Wolfgang-Böckenförde, 'The Origin and Development of the Concept of the *Rechtsstaat*', in E. Wolfgang-Böckenförde, *State, Society and Liberty*, trans. J.A. Underwood (Leamington Spa, 1991), esp. pp. 58 ff., 61–70.

⁷⁰ Caldwell, *Popular Sovereignty*, pp. 85 f., 105.

⁷¹ Neumann, '*Rechtsstaat*', *SD*, p. 67. Cf. Neumann, *The Rule of Law*, p. 293.

⁷² Cf. Neumann, '*Rechtsstaat*', *SD*, p. 68; Bast, *Totalitärer Pluralismus*, p. 77; Intelmann, *Franz L. Neumann*, p. 94.

⁷³ Neumann, '*Rechtsstaat*', *SD*, pp. 68 f.

If one does not draw . . . distinctions, and sees in the generality of the law, nothing but a requirement of capitalist economy, then of course, one must infer with Carl Schmitt that the *general* law, the independence of judges, and the separation of powers, must be abolished when capitalism dies.⁷⁴

Under conditions of 'monopoly' capitalism and mass-democracy, however, the prognosis is different:

absolute control of the administration is decisive in parliamentary mass democracy . . . the independence of judges is a myth and . . . the modern administrative state based on intervention must have an entirely different understanding of the relation between the three powers than that which existed in the liberal *Rechtsstaat*.⁷⁵

As Scheuerman has argued, here we can again see Neumann's suggestion that only when material and social equality has been achieved, necessarily in some kind of post-capitalist society, will general law have a meaningful place.⁷⁶ Indeed, in the context of a discussion about land expropriation under Weimar, he considers the issue of legal generality in more detail.⁷⁷ Suggesting that although Article 109 of the constitution had been disingenuously abused by 'certain lawyers' — presumably Schmitt again — in order to protect private property, positive equality need not simply 'be realised through general laws'. That is the 'fallacious conclusion of Rousseau'. Furthermore, Neumann writes that 'against such an assertion, it must be maintained that material equality can as well be established by *means of individual interferences*'.⁷⁸ Indeed, he suggests that the case for the generality of law is absurd under monopolistic conditions, and that it is therefore correct to challenge such an assertion:

The revival of the concept of the generality of the law and its indiscriminate application to the spheres of economic and political activities served therefore as a tool against the sovereignty of Parliament, which under the Weimar Constitution represented not only the interests of the landlords and the bourgeoisie [sic] but to a large extent those of the working class. The general law was intended to be applied as a means of maintaining the existing property order, and it was used as a factor designed to discredit the

⁷⁴ Neumann, *The Rule of Law*, p. 257. Emphasis added.

⁷⁵ Neumann, '*Rechtsstaat*', *SD*, pp. 72 f.

⁷⁶ Scheuerman, *Norm and Exception*, p. 57.

⁷⁷ Most famously, the Expropriation Bill of 1926. For details, see Hans Mommsen, *The Rise and Fall of Weimar Democracy*, trans. Elborg Forster and Larry Eugene Jones (Chapel Hill (1989), 1996), pp. 239–42. Schmitt was critical of the bill's alleged 'parliamentary absolutism'. Cf. Carl Schmitt, 'Die Auflösung des Enteignungsbegriff' (1929), *Verfassungsrechtliche Aufsätze*, pp. 116–17. See also Ingeborg Maus, 'The 1933 "Break" in Carl Schmitt's Theory' (1969), in *Law as Politics. Carl Schmitt's Critique of Liberalism*, ed. David Dyzenhaus (Durham and London, 1997), p. 203.

⁷⁸ Neumann, *The Rule of Law*, pp. 274–5. Emphasis added.

sovereignty of Parliament. By this the generality of the law took the place of a natural law. It was in fact nothing but a hidden natural law.⁷⁹

Neumann's central claim, then, was that the democratic elements of the Weimar constitution could be upheld and promoted only through the intervention of a strong, sovereign state. Indeed, the fact that the social equality he desires can be brought about only through the activities of such a strong interventionist state offers a very particular development and modification of Schmitt's position.⁸⁰ Both thought that the contemporary state was weak and that Parliament was no longer able to provide adequate political leadership. For Schmitt, however, this is the logical conclusion of the *rechtsstaatlich* elements of the constitution, which stand opposed to its properly political foundations and tend simply to 'relativize' state power.⁸¹ Democracy and liberalism have now to be disentangled. Neumann, on the other hand, suggested that the ideals of liberty under the *Rechtsstaat* were not only compatible with a competitive market society and a minimal state, but that 'the non-interventionist state of liberalism was certainly negative but it was never weak. It was, rather, just as strong as its economic and social structure made necessary',⁸² and 'the force which integrated that society, based upon personal, political, and economic freedom, into a State, was the conception of the nation (*the irrational basis of society*)'.⁸³ He wished, therefore, to radicalize the *Rechtsstaat* rather than renounce it, and to complete the process of legal rationalization begun under it, for this would allow the sovereign state to defend a positive principle of equality. This is, in fact, precisely the challenge he had earlier laid down for a socialist political theory of the state — to '*develop and concretely present the positive social content of the second part of the Weimar Constitution*'.⁸⁴

This can be further explained by listing in more detail the major discrepancies Neumann perceives between contemporary constitutional norms and reality.⁸⁵

⁷⁹ *Ibid.*, p. 276. See also Otto Kahn-Freund, 'Das soziale Ideal des Reichsarbeitsgerichts' (1931), quoted in Tim Mason, 'The Origins of the Law on the Organization of National Labour of 20 January 1934. An Investigation into the Relationship Between "Archaic" and "Modern" Elements in Recent German History' (1974), in *Nazism, Fascism and the Working Class*, ed. Jane Caplan (Cambridge, 1995), p. 97. Cf. Alfons Söllner, 'Franz Neumann', *Telos*, 50 (1980), pp. 171–9, pp. 172 f.

⁸⁰ Volker Neumann, 'Kompromiss', p. 68: 'the position [*Stellung*] of the state marks the difference between the political theory of Schmitt and Neumann'.

⁸¹ Caldwell, *Popular Sovereignty*, p. 102.

⁸² Neumann, *The Rule of Law*, p. 198.

⁸³ *Ibid.*, pp. 186, 205.

⁸⁴ Franz L. Neumann, 'The Social Significance of the Basic Laws in the Weimar Constitution' (1930), *SD*, p. 43; Intemann, *Franz L. Neumann*, pp. 97, 123.

⁸⁵ The six points quoted in this paragraph are drawn from Franz Neumann, 'On the Preconditions and the Legal Concept of an Economic Constitution' (1931), *SD*, pp. 49–51.

First, although Germany is a parliamentary democracy, numerous 'social power groups have appropriated to themselves control of the state decision-making process'. These processes, 'pluralism', are indicative of the type of system that 'contradicts the idea of the Weimar Constitution, which treats Parliament as the supreme source of decision in the state'.⁸⁶ Second, judicial rights of review over parliamentary legislation illustrate the 'immense danger to democracy' that exists when such judicial review coexists with the 'predominant *bourgeois interpretation* of basic laws'.⁸⁷ Third, Neumann points out the increasingly 'autonomous domination of the public economic sector' or '*Polykratie*', to use an expression of Popitz which was adopted by Carl Schmitt, the effect of which has been the weakening of the state. Fourth, he notes that Parliament, 'the sovereign decision-making organ, is furthermore paralysed by federalism'. In fact, he suggests that 'the problems of pluralism and *Polykratie* are combined in federalism'. Fifth, there is parliamentary 'failure' in the sphere of administration: 'The parliamentary system of government has led to an unprecedented assumption of power by the bureaucracy.' Consequently, it is in the sphere of the economy 'that the impossibility of parliamentary control is clearly in evidence'. His sixth and final statement concerns the 'limited activity — not to say inactivity — of Parliament . . . based on the class equilibrium prevailing in the parliamentary arena'.⁸⁸

For all the detail and obvious relevance of Neumann's presentation, the analysis outlined above is almost exactly the same as that offered by Schmitt in his account of the contemporary 'total state'.⁸⁹ In the first presentation in 1929, for example, of Schmitt's essay on the 'guardian of the constitution', he had argued that 'pluralism', 'polycracy' and 'federalism' were the central challenges facing the constitutional order.⁹⁰ For both Schmitt and Neumann, moreover, modern Parliament has ceased to be an arena capable of providing meaningful deliberation and the production of a general, or 'supra-

⁸⁶ On this general understanding of parliamentary sovereignty, see Detlef Lehnert, 'Hugo Preuß als moderner Klassiker einer kritischen Theorie der "verfaßten" Politik. Vom Souveränitätsproblem zum demokratischen Pluralismus', *Politische Vierteljahresschrift*, 33 (1992), pp. 33–54, p. 45. Cf. Neumann, *The Rule of Law*, pp. 269 ff.; Franz Neumann, 'The Decay of German Democracy', *Political Quarterly*, 4 (1933), pp. 525–43, pp. 526–7.

⁸⁷ Cf. Hermann Heller, '*Rechtsstaat* or Dictatorship' (1929), trans. Ellen Kennedy, *Economy and Society*, 16 (1987), pp. 127–42.

⁸⁸ Cf. Franz Neumann [Leopold Franz], '*Rechtsstaat*, the Division of Powers and Socialism' (1934), *SD*, p. 72.

⁸⁹ Cf. G. Haverkate, 'Deutsche Staatsrechtslehre und Verfassungspolitik', in H. Boldt et al., 'Staat und Souveränität', in *Geschichtliche Grundbegriffe: Historisches Lexicon zur politisch-sozialen Sprache in Deutschland*, Band 6, ed. O. Brunner, W. Conze and R. Koselleck (Stuttgart, 1985), esp. pp. 83–4; Andrew Arato and Jean L. Cohen, *Civil Society and Political Theory* (Cambridge, MA, 1997), pp. 233–41.

⁹⁰ Carl Schmitt, 'Der Hüter der Verfassung', *Archiv des öffentlichen Rechts*, 16 (1929), pp. 161–237.

parliamentary will' — it has, rather, 'become the *stage* [*Schauplatz*] where compromises are reached between the various partners in the class struggle'.⁹¹ Indeed, Schmitt understands the contemporary 'total state' in a 'quantitative' rather than a 'qualitative' manner. Because of its increased intervention into ever more public arenas, the position of the state as the highest form of political unity has been challenged and the distinction between state and society blurred.⁹² Parliament — reflecting this fragmentation and blurring of boundaries — is actually a central threat to the constitution.

Herein lies Schmitt's principal justification for presidential government. Moreover, there is a general agreement in the works of Weber, Schmitt and Neumann about the principal underlying factor that has brought about such parliamentary weakness; it is the negative political impact of mass democracy.⁹³ For example, adapting the works of Weber, Friedrich Naumann and Hugo Preuss or, more specifically, criticizing their desire to 'incorporate' the working class into the state, Schmitt clearly suggests that the combination (*Verbindung*) of democracy and contemporary social reform has altered the particular or individual (*Eigenart*) character of Parliament. Today, it 'is no more the representative of political unity; it becomes [rather] an exponent of the interests and moods of the masses of the voters'. Therefore, properly representative government is, or rather should be, representation against (*gegen*) Parliament.⁹⁴ Both Schmitt and Neumann seem to accept Weber's criticisms of a legislature beholden to particularistic interest groups. Indeed, Weber's discussion of Parliament turned on its ability to perform the vital task of leadership selection. After the First World War, Weber's view was that Parliament was no longer fit for this task, and he too promoted the position of the *Reichspräsident*, though in a manner somewhat more constitutionally constrained than Schmitt's.⁹⁵

Conversely, the positive spin on the idea of the 'total state' — initially discussed by Schmitt in connection with Italian fascism⁹⁶ — suggests that a 'genuine', that is 'political', state is always a (qualitative) 'total' state, as it offers a complete presentation of the whole of political life. This term, indeed, would

⁹¹ Neumann, *The Rule of Law*, p. 272. The quoted source here is Otto Kirchheimer. It could easily be Schmitt — the formulation is near identical. Cf. Schmitt, *Hüter der Verfassung*, esp. pp. 73–96, 117.

⁹² Carl Schmitt, 'Machtpositionen des modernen Staates' (1933), *Verfassungsrechtliche Aufsätze*, p. 371.

⁹³ Carl Schmitt, 'Preface to the Second Edition (1926): On the Contradiction between Parliamentarism and Democracy', in Schmitt, *The Crisis of Parliamentary Democracy*, esp. p. 15.

⁹⁴ Schmitt, *Verfassungslehre*, pp. 314 f. Cf. Max Weber, 'Suffrage and Democracy in Germany' (1917), *Political Writings*, p. 129.

⁹⁵ Max Weber, 'The President of the Reich' (1919), *Political Writings*, pp. 304–8.

⁹⁶ Wolfgang Schieder, 'Carl Schmitt und Italien', *Vierteljahreshefte für Zeitgeschichte*, 37 (1989), pp. 1–21.

shortly become a central category of 'National Socialist self-understanding' in the triptych of *Staat, Bewegung* and *Volk* — three concepts that form the title of one of Schmitt's first publications under the Hitler state.⁹⁷ Moreover, our more familiar understanding of the 'total state', corresponds to the Cold War characterization of both National Socialism and Soviet communism as 'totalitarian'.⁹⁸ In itself, as Kershaw remarks, this was 'unusual in political science typologization in attempting to lump together systems which, in their self-image, were wholly antagonistic towards each other'.⁹⁹ But, as already suggested, neither Neumann nor Schmitt uses the term in this all too common manner — it has a peculiarly German intonation.¹⁰⁰ While both agree on the debility of Parliament under Weimar, the litmus test of the contemporary situation for Neumann, however, is the potential of this total state to fulfil a critique of liberal political economy which 'conceived . . . [of] a regulated post-capitalist economy under the direction of a coherent sovereign state'.¹⁰¹

Integration and the Economic Constitution

Schmitt suggested in his most famous work that the equation 'state = politics' becomes void at the moment when state and society penetrate each other.¹⁰² Precisely such penetration, in the form of interest groups and the domination of political parties, is the leitmotiv of a movement away from the strict separation of state and society, which both Schmitt and Neumann take to be representative of liberalism in its classical form. The historical development of liberalism and parliamentary government threatens to undermine the democratic requirement of homogeneity found in the writings of both Schmitt and Neumann. As already implied, however, Neumann's account disputes the necessarily conflictual conclusions resulting from Schmitt's analysis, and instead points towards the virtues of compromise and cooperation.

His analysis here owed much to the 'integrationist' theories of both Rudolf Smend and Hermann Heller.¹⁰³ In fact, rather than looking to the notions of 'decision' and 'sovereignty' with all that they imply in the work of Schmitt, Neumann sought 'compromise' and 'pluralism' through the idea of an

⁹⁷ Carl Schmitt, *Staat, Bewegung, Volk* (Hamburg, 1933).

⁹⁸ Tribe, 'Capitalism', pp. 180 f.

⁹⁹ Ian Kershaw, 'The Nazi State. An Exceptional State?', *New Left Review*, 176 (1989), pp. 47–70, p. 50.

¹⁰⁰ See Tribe, 'Capitalism', p. 181. Cf. Kershaw, *Nazi Dictatorship*, pp. 20, 33; Intelmann, *Franz L. Neumann*, p. 225.

¹⁰¹ Keith Tribe, 'Introduction to Neumann', *Economy and Society*, 10 (1981), pp. 316–28, p. 325; Intelmann, *Franz L. Neumann*, pp. 174 ff.

¹⁰² Schmitt, *Concept of the Political*, p. 22; Schmitt, 'Legalität und Legitimität', p. 343.

¹⁰³ See for example Rudolf Smend, 'Verfassung und Verfassungsrecht' (1928), in his *Staatsrechtliche Abhandlungen und andere Aufsätze* (Berlin, 1955), pp. 119–276. On Heller and Smend, see Caldwell, *Popular Sovereignty*, Ch. 5.

economic constitution, to ‘further develop [*Fortentwicklung*]’ the Weimar constitution without the need for revolution.¹⁰⁴ Essentially, if malign ‘party-political influence’ were forbidden (*Verboten*) from interfering with the ‘freedom of association for the maintenance and improvement of labour and economic conditions’ guaranteed by Article 159 of the constitution, then some compromise coalition could be brokered between the state and various ‘economic agencies’ (*Wirtschaftsvereinigungen*) that would be of great benefit to the working class.¹⁰⁵ The social conflict between capital and labour might then achieve a temporary resolution.¹⁰⁶ The purpose of an economic constitution, therefore, was to guide and reinforce state control of both capitalism and contemporary politics. That this requires a ‘strong’ state, however, is illustrated in Heller’s famous point — that social democracy would rather have an ‘authoritarian’ as opposed to a ‘total’ (i.e. weak) state.¹⁰⁷

Denying, therefore, the necessary distinction between friend and enemy constitutive of Schmitt’s account of the political, Neumann looked instead to co-operation and association to aid in the maintenance and development of the state. Indeed, he devoted a book-length study to the problems of freedom of association and the position of the trade unions within the system of the Weimar constitution.¹⁰⁸ It is therefore worth outlining a little more specifically what goes into such an ‘economic constitution’, which he suggests is ‘not identical with the legal norms which regulate the organisation of the economy’, but which ‘according to prevailing constitutional law . . . cannot have priority over the state constitution’.¹⁰⁹

As Karl Renner, another formative influence on Neumann’s thinking, had previously argued, ‘fundamental changes in society are possible without accompanying alterations of the legal system’, because ‘it is not the law that causes economic development’. A corollary of this is that ‘economic change does not immediately and automatically bring about changes in the law’; indeed, ‘development by leaps and bounds is unknown in the social substratum, which knows evolution only, not revolution’.¹¹⁰ Building on these related

¹⁰⁴ Volker Neumann, ‘Kompromiss’, pp. 68–9; Intelmann, *Franz L. Neumann*, p. 84.

¹⁰⁵ Volker Neumann, ‘Kompromiss’, p. 72.

¹⁰⁶ For wider reflections on this theme, see Albert Hirschman, ‘Social Conflicts as Pillars of Democratic Market Society’, *Political Theory*, 22 (1994), pp. 203–18, esp. pp. 213 ff.

¹⁰⁷ Hermann Heller, ‘Ziele und Grenzen einer deutschen Verfassungsreform’, in *Gesammelte Schriften*, Vol. 2, ed. M. Drath *et al* (Leiden, 1971), p. 415.

¹⁰⁸ Franz L. Neumann, *Koalitionsfreiheit und Reichsverfassung. Die Stellung der Gewerkschaften im Verfassungssystem* (Berlin, 1932). Cf. Volker Neumann, ‘Kompromiss’, pp. 67–70; Intelmann, ‘Zur Biographie von Franz L. Neumann’, p. 22.

¹⁰⁹ Neumann, ‘Economic Constitution’, *SD*, pp. 52 f.

¹¹⁰ Karl Renner, *The Institutions of Private Law and Their Social Functions*, trans. Agnes Schwarzschild (London (1929), 1949), pp. 252 f. Cf. Raimund Loew, ‘The Poli-

assumptions, Neumann asserted that the 'economic constitution is intended to provide the possibility of some form of state and social intervention into the natural course of economic activity, that is, into the condition of economic freedom'.¹¹¹

An economic constitution was necessary because the Weimar constitution 'by no means guarantees freedom of contract, of trade and of enterprise as such prior rights . . . [rather] these rights are *merely constitutionally secured* and . . . from the beginning (and without exception) this guarantee has been a strictly limited one'. Neumann continues, suggesting that as time has gone on, the 'meaning of the Weimar constitution has been transformed into its opposite; in particular the protection of property secured by Article 153 has expanded immensely'.¹¹² Crucially this meant that 'not only the possession of tangible objects *but also any subjective right* has become the object of the right of private property'. Such developments, therefore, rather than precluding state intervention, meant that the corollaries of Article 153 — Articles 156 and 165 — made 'intervention a necessity'.¹¹³ Put simply, '*the economic constitution is the system of norms which orders state and social intervention into economic freedom, which is solely an enhanced legal freedom*'.¹¹⁴ It is not 'identical with the legal norms which regulate the organisation of the economy'; rather, it is a strengthening of the legal position of labour in relation to capital.¹¹⁵ As Neumann explains, 'the basic law adequate to the economic constitution is the freedom of association anchored in Article 159 of the Reich Constitution'.¹¹⁶ Thus, 'cartels, concerns and individual businesses' must be subject to the control of the strong central state.¹¹⁷ Moreover, 'in the organisation of the economic constitution, ultimate control will rest with the state in all decisive economic matters', a position ironically similar to Schmitt's discussion of the relationship between the strong 'total' state and the economy.¹¹⁸

To reach this understanding, however, Neumann again utilizes Renner's method. He recognizes that legal norms can remain constant in the midst of

tics of Austro-Marxism', *New Left Review*, 118 (1979), pp. 15–53; Bast, *Totalitärer Pluralismus*, pp. 225–37.

¹¹¹ Neumann, 'Economic Constitution', *SD*, p. 56.

¹¹² *Ibid.*, pp. 56 f. Emphasis added. Article 153 concerns property and expropriation.

¹¹³ *Ibid.* Article 156 concerns the transfer of suitable 'private economic undertakings which are suitable for socialisation' and Article 165 concerns workers' representation.

¹¹⁴ *Ibid.*, pp. 57 f.

¹¹⁵ *Ibid.*, pp. 52 f.

¹¹⁶ *Ibid.*, p. 65.

¹¹⁷ Thornhill, *Political Theory*, pp. 101 f; Intelmann, *Franz L. Neumann*, p. 162 ff.

¹¹⁸ Neumann, 'Economic Constitution', *SD*, p. 63. Cf. Carl Schmitt, 'Gesunde Wirtschaft im starken Staat' (1932), translated as 'Strong State and Sound Economy', in Renato Cristi, *Carl Schmitt and Authoritarian Liberalism* (Cardiff, 1998), pp. 212–32.

economic change, but also notes that ‘law’ and ‘economy’ are mutually constituting. Therefore, and this is the aspect of Renner’s account of most importance to Neumann’s analysis:

to decide the function of the law in general, we have to study inductively all social orders as they appear in the course of history, from the most primitive to the most highly developed. By this method we obtain the general categories of the social order and at the same time the general functions of the law.¹¹⁹

Freedom and Rational Law

Building on his attempt to shore up ‘economic freedom’ by legal means, Neumann’s wider attention focuses on the dual nature of freedom and the rule of law. As he makes clear in *The Rule of Law*, Neumann defines freedom — here correlated with liberty — as did Hobbes, in terms of ‘the absence of external impediment’.¹²⁰ Therefore, ‘in the *political* sphere legal freedom exists for every type of behaviour not prohibited by the law’. However, ‘freedom in the *sociological* sense means something completely different’. For ‘we call someone completely free in a sociological sense if he has the legally free choice between at least two equal opportunities’.¹²¹ Over and above this, the conclusion Neumann draws is that ‘freedom in a philosophical sense is the real possibility of human self-assertion, the ending of the alienation of man from himself’ — this ‘philosophical’ understanding evidently presupposing the two prior conceptualizations.¹²² The spectre of Marx is evident in this definition, which highlights an understanding of the ideological character of legal freedom under capitalism.¹²³ It also serves to bolster conceptually the links between freedom and equality. Fundamentally, however, Neumann is principally concerned with the relationship between capitalism and freedom, and in this he is truly heir to Weber’s legacy. Famously, in a series of articles written between 1917 and 1918 on ‘Parliament and Government in Germany under a New Political Order’, which would certainly have had a major influence on

¹¹⁹ Neumann, ‘Economic Constitution’, *SD*, pp. 58 f.; cf. Renner, *Institutions*, pp. 252–300. See also Scheuerman, *Norm and Exception*, p. 46; cf. Neumann, *The Rule of Law*, p. 232. Neumann and Kirchheimer introduced Schmitt to Renner’s work in Schmitt’s 1931 seminar on constitutional theory in Berlin. Cf. Carl Schmitt, ‘Freiheitsrechte und institutionelle Garantien der Reichsverfassung’ (1931), in Schmitt, *Verfassungsrechtliche Aufsätze*, p. 168; Bredekamp, ‘Benjamin to Schmitt’, p. 261.

¹²⁰ Neumann, *The Rule of Law*, p. 32. Cf. Thomas Hobbes, *Leviathan*, ed. Richard Tuck (Cambridge (1651), 1991), p. 145. See also Quentin Skinner, ‘Thomas Hobbes on the Proper Signification of Liberty’, *Transactions of the Royal Historical Society* (1990), pp. 121–51.

¹²¹ Neumann, *The Rule of Law*, pp. 32 f. Emphasis added.

¹²² *Ibid.*, p. 35.

¹²³ Cf. Thornhill, *Political Theory*, pp. 94–6; Neumann, *The Rule of Law*, pp. 212 f., 254 f.; Intelmann, *Franz L. Neumann*, p. 86.

both Schmitt and Neumann, Weber questioned how 'individual freedom' was to be maintained under modern, bureaucratized conditions.¹²⁴ Equally, in earlier reflections on the historical triumphs of liberalism that are included within his essays on the 1905 Russian Revolution, Weber wrote that:

it is vital that liberalism continue to see its vocation as fighting against both bureaucratic and Jacobin centralism and working at the permeation of the masses with the old individualistic basic idea of the 'inalienable rights of man', which have become as 'boring' to us Western Europeans as black bread is for the person who has enough to eat.¹²⁵

Moreover, he asked, how can such ideals as liberty and democracy 'exist at all for any length of time under the domination of capitalism?' In fact (Weber continues) 'they are only possible where they are backed up by the determined will of a nation not to be ruled like a flock of sheep'. Therefore, 'we "individualists" and supporters of "democratic" institutions must swim "against the tide" of material constellations'.¹²⁶

The questions and sentiments are exactly the same as Neumann's. Neumann, however, subdivided the 'rights of man', and offered a distinction between liberalism and democracy again reminiscent of Schmitt, in order to separate 'inalienable liberties', which 'can only be removed by the legislature in the process of constitutional amendment', from those that 'can be removed by the simple legislative process'. Apart from such 'positive constitutional law' distinctions, Neumann further compartmentalized these rights 'according to their subject matter' — economic or social rights to freedom, for instance.¹²⁷ The point of this was to show that from 'political rights the rights of the *status activus* must be divorced'.¹²⁸ That is, Neumann is here reinforcing the distinction between *liberal* and *democratic* rights, because liberal-individual rights as currently understood would appear to have little use in the kind of post-capitalist society based on material and social equality that he is keen to promote.¹²⁹ Moreover, given that he has already defined democracy once again in Schmitt's terms, it is clear that his work continues to remain very much within the latter's frame of reference.¹³⁰

¹²⁴ Max Weber, 'Parliament and Government in Germany under a New Political Order' (1917–18), *Political Writings*, p. 159.

¹²⁵ Max Weber, 'Bourgeois Democracy in Russia' (1906), in *The Russian Revolutions*, ed. and trans. P. Baehr and G.C. Wells (Oxford, 1995), p. 108. My emphasis.

¹²⁶ *Ibid.*, p. 109.

¹²⁷ Neumann, *The Rule of Law*, pp. 36–7.

¹²⁸ *Ibid.*

¹²⁹ Cf. Franz Neumann, 'On the Concept of Political Freedom', *Columbia Law Review*, 53 (1951), pp. 901–35, pp. 934 f.; Scheuerman, *Norm and Exception*, p. 57.

¹³⁰ See Neumann, '*Rechtsstaat*', *SD*, p. 73: 'Democracy rests upon equality. Popular sovereignty means identity of the rulers and the ruled.'

But despite the similarities between their analyses, as William Scheuerman has argued, Neumann remains highly critical of Schmitt's concept of the political. In his *Koalitionsfreiheit und Reichsverfassung*, for example, he suggested that Schmitt's account must necessarily perceive 'all inhibitions and controls on state power' as 'unpolitical'.¹³¹ Moreover, he suggested that the political exists 'not only [*nicht nur*] where there is an existing [*wirksam*] friend-enemy opposition [*gegensatz*]', but also where 'disputing forces' (*streitende Kräfte*) are present 'which desire to contribute [*beitragen*] to the construction [*Aufbau*] of a state-type body [*Staatswesen*]'.¹³² This clearly indicates a much more pragmatic view of the political than that espoused by Schmitt. The general tenor of the objection suggests to me, however, to suggest that although Neumann took up many of his ideas, he seems to have missed something in Schmitt's point that it is precisely the contemporary insertion of the state into numerous, properly 'apolitical', arenas which characterizes the weak total state. Those 'inhibitions' on state power that Neumann mentions have become political ones, which is what leads Schmitt famously to call for a clearly political process of *depoliticization*.¹³³ Scheuerman also suggests that, according to Neumann, Schmitt's 'separation' of normal and emergency powers 'presupposes' a problematic distinction between the 'dynamic and static features of political reality'.¹³⁴ Given the way Schmitt understands the 'normal' situation as itself produced by the exceptional, Neumann's criticism here also seems to need more detail.¹³⁵ Indeed, a subtler attempt at a critique of Schmitt can be found in Benjamin's work, which pointedly turns his 'political theology' against itself. By outlining a view of history able to account for the fact that under fascism the "state of exception" in which we live is not the exception but the norm, Benjamin's 'demand for a true state of exception', unlike Schmitt's, represents a messianic hope for political liberation from a barbaric past.¹³⁶

Nevertheless, as previously indicated, Neumann's 'integrationist' vision was a common position within the SPD generally, and goes some way to explaining the policy of *Tolerierungspolitik* towards Weimar's presidential

¹³¹ Neumann, *Koalitionsfreiheit*, p. 125, quoted in Scheuerman, *Norm and Exception*, p. 40.

¹³² Neumann, *Koalitionsfreiheit*, p. 127, quoted in Volker Neumann, 'Kompromiss', p. 68.

¹³³ Cf. Gopal Balakrishnan, *The Enemy. An Intellectual Biography of Carl Schmitt* (London, 2000), pp. 150 ff.; Schmitt, 'Age of Neutralizations', *passim*.

¹³⁴ Scheuerman, *Norm and Exception*, p. 40.

¹³⁵ Cf. Schmitt, *Political Theology*, p. 13; Carl Schmitt, *Die Diktatur. Von den Anfängen des modernen Souveränitätsgedankens bis zum proletarischen Klassenkampf* (Berlin (1921, rev. 1928), 1978), pp. 136 f.

¹³⁶ Walter Benjamin, 'Theses on the Philosophy of History', in *Illuminations*, ed. Hannah Arendt, trans. H. Zohn (London, 1992), pp. 248 f.; Bredekamp, 'Benjamin to Schmitt', p. 264.

regimes.¹³⁷ The understanding of social change as driven by a powerful state operating within strictly defined limits remains a constant; like Heller, Neumann calls for 'predictable' or 'measurable interference' by the state.¹³⁸ Scheuerman, however, deems this potentially progressive characterization a failure. The Schmittian counterpoising of a fragmented contemporary liberalism with a homogeneous democracy, he suggests, 'becomes the basis for a peculiar defense of what we can only describe as authoritarian laborism', promoted in particular under Brüning's rule during late Weimar.¹³⁹

Neumann's call for predictable state interference was nonetheless based on a defence of rational law, such law as he also saw challenged in the *Freirecht* — or as it is termed in *The Rule of Law*, the 'school of free discretion' — approach to legal analysis. This approach focused on the 'gap' between the legal norm and its concrete application, highlighting the importance of the role of judges, for example, who in their intermediary interpretation of legal norms were seen as central to the implementation of the law. The approach also has many present-day champions. According to Neumann, however, this type of analysis tries to 'abolish formal rational law and replace it by material norms, and irrational decisions'.¹⁴⁰ Moreover, Neumann's position here is wholly compatible with the arguments of Max Weber, who observed that this 'flight into the irrational' was precisely a result of the increasing rationalization of the legal system itself. More concretely, he also suggested that 'it is by no means certain that those classes which are negatively privileged today, *especially the working classes*, may expect safely from an informal administration of justice those results which are claimed for it'.¹⁴¹ This passage is, as one might expect, critical for Neumann, and although it leads into a further development in his ongoing confrontation with Schmitt, it also returns Weber to the foreground.

Decisionism is *not* Sovereignty

Despite his continued engagement with Schmitt, one can more clearly detect in *The Rule of Law*, written only three years after the demise of Weimar, the main lines of Neumann's hostility towards him. After stating that 'functional legal thought, which lies at the bottom of all our investigations, starts from the assumption that law is not a substance in itself, but a function of society',

¹³⁷ Thornhill, *Political Theory*, p. 104; Ellen Kennedy, 'Hermann Heller and the Politics of Toleration in Late Weimar', *History of Political Thought*, V (1984), pp. 109–27, pp. 110–11.

¹³⁸ Neumann, *The Rule of Law*, p. 32. Emphasis in original.

¹³⁹ Scheuerman, *Norm and Exception*, pp. 57 f.

¹⁴⁰ Neumann, *The Rule of Law*, pp. 278, 280: 'the political attitude of the judiciary; their hostility to democracy'.

¹⁴¹ Weber, *Economy and Society*, Vol. 2, p. 893. See also Neumann, 'The Change in the Function of Law in Modern Society', *DAS*, pp. 55 f.

Neumann vents his spleen at so-called 'decisionistic' legal thought in a passage worth quoting fully:

Decisionistic legal thought has, in fact, nothing to do with law. In this kind of legal thinking, law is nothing but a technique for transforming the political will into legal form. In decisionism law is nothing but an *arcanum* for the maintenance of power. It is an *arcanum dominationis*, and it is characteristic that in political theory the doctrine of the *arcana* arose at the time when theology lost its dominating influence.¹⁴²

Neumann's authority for the historical clause at the end of this quotation is none other than Carl Schmitt.¹⁴³ The irony of this (surely purposeful) reference is that the very type of thought that Neumann decries is in fact that which he (now, in 1936) views Schmitt as practising.¹⁴⁴ As is well known, in *Behemoth* Schmitt was presented as the leading ideologist of National Socialism, a 'non-state' in which there is no longer any such thing as the rule of law. Indeed, the impassioned paragraph that ends *The Rule of Law* had already outlined the position of law in contemporary Germany:

We therefore sum up: That law does not exist in Germany, because law is now exclusively a technique of transforming the political will of the Leader into constitutional reality. Law is nothing but an *arcanum dominationis*.¹⁴⁵

The implication of his argument, which suggests that for law to exist there must be a state, nevertheless corresponds with Schmitt's Weimar writings. Indeed, the rapid call for the 'transcendence' of the state by such National Socialist party hacks as Otto Köllreutter, was a direct challenge to Schmitt's ideas and played at least a bit part in his ousting from the heights of the Nazi legal establishment.¹⁴⁶ For example, Neumann quotes from Schmitt to the effect that 'the people' under the totalitarian, National Socialist state are treated as essentially *unpolitical*, and located mainly within the private sphere. The unified constituent will of the people, which stood at the root of the democratic state, is now forgotten, for 'the people' here exist simply to be

¹⁴² Neumann, *The Rule of Law*, p. 285. Emphasis added.

¹⁴³ Schmitt, *Die Diktatur*, pp. 13 f.

¹⁴⁴ It is thus with great anticipation that we await something of a 'rewriting' of this work as announced by Pasquale Pasquino in his excellent, though brief, discussion 'Locke on King's Prerogative', *Political Theory*, 26 (1998), pp. 198–208, p. 198. Cf. Neumann, *The Rule of Law*, p. 23.

¹⁴⁵ Neumann, *The Rule of Law*, p. 298. Cf. Neumann, *Behemoth*, p. 453.

¹⁴⁶ Neumann, *The Rule of Law*, pp. 288 f. Cf. Peter C. Caldwell, 'National Socialism and Constitutional Law: Carl Schmitt, Otto Koellreutter, and the Debate over the Nature of the Nazi State, 1933–1937', *Cardozo Law Review*, 16 (1994), pp. 399–427; Caplan, *Government Without Administration*, pp. 334 ff; Volker Neumann, *Der Staat im Bürgerkrieg* (Frankfurt am Main, 1980), p. 148.

ruled.¹⁴⁷ This analysis obviously stood in sharp contrast to most other National Socialist propagandist accounts of the role of the *Volk*. Neumann therefore detects even at this late stage an equivocation in Schmitt's thought as it relates to the theorization of the new Nazi regime.¹⁴⁸ As Keith Tribe has suggested, it would have been easy for Neumann to present Schmitt as just as much of a crude ideologue in *The Rule of Law* as he does in *Behemoth*. The principal reason why he does not do so is because Schmitt had offered his theory of sovereignty, dictatorship and decision as grounded in historical example, guided in particular by Pufendorf's question: *quis iudicabit*, or who decides? Neumann therefore devotes a substantial part of the research to challenging such an interpretation, ranging widely over the entire history of western political thought.¹⁴⁹

Schmitt's most famous definition of sovereignty concerns the ability to decide upon the state of exception.¹⁵⁰ For Neumann, however, 'both sovereignty and the rule of law are constitutive elements of the modern state', yet ultimately 'both are irreconcilable with each other, for highest might and highest right cannot be at one and the same time realised in a common sphere'.¹⁵¹ This is why he then distinguishes between legal and sociological definitions of sovereignty, observing that in the latter sense, 'an element of both right and power is included'.¹⁵² The distinction, however, as already suggested, retains those normativist elements that Schmitt will not permit.

¹⁴⁷ Carl Schmitt, *Staat, Bewegung, Volk*, p. 12, quoted in Neumann, *Behemoth*, pp. 65 f. Cf. Neumann, *Behemoth*, pp. 288–9, 347, n. 11; Joseph Bendersky, *Carl Schmitt: Theorist for the Reich* (Princeton, NJ, 1987), pp. 222 ff.; and Caldwell, 'National Socialism and Constitutional Law', pp. 407–19.

¹⁴⁸ Caldwell, 'National Socialism and Constitutional Law', p. 417, n. 84. In *Behemoth*, Neumann references Schmitt's work up until 1938 *without* discussing the question of his anti-semitism, which Raphael Gross has argued was present from at least 1933, 'Carl Schmitts "Nomos" und die "Juden"', *Merkur*, 47 (1993), pp. 410–20, now further detailed in R. Gross, *Carl Schmitt und die Juden* (Frankfurt am Main, 2000). Cf. Günter Meuter, 'Blut oder Boden. Anmerkungen zu Carl Schmitts Antisemitismus', *Deutsche Vierteljahrsschrift für Literaturwissenschaft und Geistesgeschichte*, 70 (1996), pp. 227–55. Neumann would have been aware of the reference to 'Joll Jolson', i.e. Friedrich Julius Stahl, made in *Staat, Bewegung, Volk*, from which he quotes extensively. The sniping reference to the 'nineteenth-century Jewish philosopher Friedrich Julius Stahl-Jolson' continues in Carl Schmitt, *The Leviathan in the State Theory of Thomas Hobbes* (1938), trans. George Schwab and Erna Hilfstein (Westport, CT, 1996), pp. 69–70, though cf. the unconvincing rationale on p. 75, notes 4 and 5. The notorious speech, 'Die deutsche Rechtswissenschaft im Kampf gegen den Jüdischen Geist', *Deutsche Juristen-Zeitung*, 41 (15 October 1936), pp. 1193–9, would also have attracted attention. See, however, Neumann, *Behemoth*, p. 121.

¹⁴⁹ Keith Tribe, 'Introduction to Neumann', p. 327, n. 9.

¹⁵⁰ Schmitt, *Political Theology*, p. 5.

¹⁵¹ Neumann, *The Rule of Law*, p. 4.

¹⁵² *Ibid.*, p. 25.

Neumann thinks that Schmitt ‘obfuscates the centrality of the (norm-based) legal order for politics’.¹⁵³ In fact, he suggests that:

Two notions of law must be distinguished, a *political* and a *rational* notion. In a political sense, law is every measure of a sovereign power, regardless of its form or content. Law is then will and nothing else. The rational concept of law, on the other hand, is determined by its form and content, not by its origin. Not every act of the sovereign is law. Law in this sense is a norm, comprehensible by reason, open to theoretical understanding, and containing an ethical postulate, primarily that of equality. Law is reason and will.¹⁵⁴

This clearly builds on Weber’s discussion of modern law as ‘rational formalism’. Weber suggested that although the validity of law under conditions of modernity is logically derived from abstract norms, it is dependent upon either textual considerations — legal propositions which accord with logical correctness — or empirical validity, which has as its basis the probabilistic assumption that people will, in fact, obey.¹⁵⁵ Here too law is reason and will. Neumann’s combined critique of ‘decisionistic’ thinking and contemporary monopoly capitalism therefore culminates in what Scheuerman terms a ‘neo-Marxist reworking of Weber’s concept of legal rationalization’, because ‘Neumann wants both radical (and explicitly anti-capitalist) social and economic reforms *and* all of the virtues of liberal general legal norms’. He therefore ‘tries to show not only that social and economic equality and classically liberal legal modes are compatible but that they *need* each other’. Thus, ‘the real elective affinity is between social democracy and formal law’.¹⁵⁶ For Scheuerman, Neumann is attempting to prove that:

modern politics still needs state organs holding a monopoly on the instruments of coercion (*and law, unlike morality, must still be backed up by the possibility of state-based force*), yet he hopes that this monopoly can take a significantly more acceptable form than it has in the past, and that the state should no longer need to act in a manner incompatible with general legal norms or above and against a system of neatly codified formal law.¹⁵⁷

Reforming Rationalization

The implication of this reading is that Neumann’s history of occidental legal thought tells the story of a long attempt to extinguish its inherent decisionist or normless elements. Because of this, it also represents a curious mirror image of Schmitt’s own generalizations about political history since the six-

¹⁵³ Scheuerman, *Norm and Exception*, p. 41.

¹⁵⁴ Neumann, *Behemoth*, p. 440. Emphasis added. Cf. Neumann, *The Rule of Law*, p. 45.

¹⁵⁵ Weber, *Economy and Society*, Vol. 1, p. 311.

¹⁵⁶ Scheuerman, *Norm and Exception*, pp. 163, 101. Emphasis added.

¹⁵⁷ *Ibid.*, p. 103. Emphasis added.

teenth century.¹⁵⁸ Indeed, the distinction he draws in *Behemoth*, quoted above, between political and rational law has come about precisely because of the breakdown of traditional conceptions of law with their intimate ties to morality. Rationalization leads towards a general Weberian *Entzauberung*, whilst simultaneously supporting an interpretation of law that (potentially) sees it simply as a neutral tool, rather than thoroughly entangled with, and indeed functional for, the regnant social order.¹⁵⁹ Neumann's subsequent social democratic 'resolution' of this disenchantment suggests that general law will be meaningful only in some sort of post-capitalist society, where material and social inequalities are absent.¹⁶⁰ In the meantime, therefore, non-general forms of law are necessary.¹⁶¹ But, in attempting to 'democratize' Weber:

Neumann's concession that general law can only be of limited significance in contemporary non-homogeneous social settings makes his positions even more peculiar than Weber's . . . Intent on emphasizing the ethical significance of the general legal norm, yet having to concede that law today often cannot take a classical structure, Neumann's alternative analysis acquires nothing less than tragic qualities.¹⁶²

Yet, as Scheuerman has further pointed out, there are perhaps two general points worth reminding ourselves of here. One is, simply, that Neumann wishes to defend something akin to a Weberian account of the state against what he sees as Schmitt's decisionism. The other, subtler, undertaking is his re-working of Weber's account of legal rationalization. Indeed, taking Weber's remarks about the potential fate of the working classes under deformed law very seriously, Neumann suggests that a focus on deformed law is actually the epitome of an irrationality, but this is an irrationality that actually serves to bolster the ruling class. These 'irrational trends come from "above" and not "below"', and they benefit 'the most secure core sector of the capitalist economy'. It is therefore in the interests of this 'secure sector' to hinder the completion of those processes of rationalization that would fulfil the necessary preconditions for the implementation of general law. Neumann suggests, alongside Weber, that the 'decline of liberal parliamentarism' is due to the rise in strength of the working class, whose incorporation via political parties into Parliament makes it a potential agent of social change, although it has weakened Parliament at the same time. It is this potential strength that has led to the renewed focus on deformed law. Moreover, 'although right to identify regulatory law's immediate roots in the

¹⁵⁸ Cf. Neumann, *The Rule of Law*, Part II; Schmitt, 'Age of Neutralizations', p. 141.

¹⁵⁹ Scheuerman, *Norm and Exception*, pp. 107 f. Cf. Neumann, *The Rule of Law*, p. 28.

¹⁶⁰ Neumann, *The Rule of Law*, p. 137. Cf. Andrew Levine, *The End of the State* (London, 1987); Thornhill, *Political Theory*, pp. 96–7; Neumann, 'Rechtsstaat', *SD*, p. 71.

¹⁶¹ See Neumann, 'Decay of German Democracy', pp. 530 f.

¹⁶² Scheuerman, *Norm and Exception*, p. 117.

democratisation process, Weber obscures its intrinsically antidemocratic nature'.¹⁶³ The particularism of deformed law is advantageous to the leading powers behind the contemporary monopoly-capitalist regime, as it has always been advantageous to ruling elites, for it is the working classes and not these elites who would be most likely to benefit from the implementation of rational or 'classical' law.¹⁶⁴ Therefore, *in extremis*, the shifting power cartels of National Socialism that he later identifies — the NSDAP, the army, the upper civil service, monopoly capital — can be seen as extant reactions to those democratic achievements of the German working class, a particularly stark attack, that is, on the legacy of 1918.¹⁶⁵

Excursus: Exile — Continuity or Transformation?

The enactment of The Law for the Restoration of the Professional Civil Service (*Gesetz zur Wiederherstellung des Berufsbeamtentums*) of 7 April 1933 transformed Neumann's position. 'The so-called "Aryan clause" of this law, sanctioning the "retirement" of Jewish officials, both retrospectively legalised the hounding from office of Jewish judges, lawyers, teachers and officials and supplied a pseudo-legal justification for the exclusion of Jews from other professions.'¹⁶⁶ His own Jewish identity aside, Neumann was also one of those who would have been deemed 'communistically active' (*kommunistisch betätigende*), given his status as a prominent SPD member, by the supplement to the law of 20 July.¹⁶⁷ Indeed, although the precise effects of the law are, statistically at least, difficult to discern, it was 'Jewish officials, known Communists, social democrats, and Centre party members or sympathisers, [who] were the most common victims'.¹⁶⁸ Neumann, along with his wife, Inge, and their son, Thomas, therefore joined the predominantly Jewish 'emigration' from Germany in May 1933, bidding farewell to his friend and partner Fraenkel with the words 'I've had enough of world-history! [*Mein Bedarf an*

¹⁶³ *Ibid.*, pp. 127–9. Cf. Neumann, *The Rule of Law*, esp. p. 280: 'The material rationality of such legal standards of conduct — in this we have to correct Max Weber — was in fact identical with irrationality.' Emphasis added.

¹⁶⁴ Scheuerman, *Norm and Exception*, pp. 127–9.

¹⁶⁵ Neumann, *Behemoth*, p. 193. Cf. Tim Mason, 'The Legacy of 1918 for National Socialism' (1971), reprinted in T. Mason, *Social Policy in The Third Reich. The Working Class and the 'National Community'* (Leamington Spa (1977), 1993), pp. 19–40.

¹⁶⁶ Michael Burleigh and Wolfgang Wipperman, *The Racial State: Germany 1933–1945* (Cambridge (1991), 1996), p. 78. Fraenkel remained — his war service partially ameliorating the law's impact. See *Nazism 1919–1945*, Vol. 2, *State, Economy and Society, 1933–1939*, ed. Jeremy Noakes and Geoff Pridham (Exeter (1984), 1995), p. 224.

¹⁶⁷ Intelmann, 'Zur Biographie von Franz L. Neumann', p. 24; *Nazism*, ed. Noakes and Pridham, Vol. 2, pp. 220–5.

¹⁶⁸ Caplan, *Government Without Administration*, pp. 146 f.; David Bankier, *The Germans and the Final Solution* (Oxford (1992), 1996), pp. 68–71.

Weltgeschichte ist gedeckt].¹⁶⁹ Of course, his move to London was hardly unproductive, and he remained more than close to SPD opposition circles in England.¹⁷⁰ He also worked to clarify his position relating to Marxist accounts of the state, engaging with the work of Laski and Mannheim. Nevertheless, this period was still largely a continuation of his engagement with the paradoxical nature of the contemporary situation in Germany.¹⁷¹

If Not a State, Then What?

If law is both a rational and political process, and indeed if law is a function of its society, based on his promotion of pluralism, compromise and integration, how can Neumann rationally explain what he has already termed irrational — National Socialism? This *arcanum dominationis* stands outside the rule of law, but if ‘it is assumed that some measure of integration is required to sustain any form of social and political order . . . then for a system to maintain itself in being there has to be some process at work which generates this necessary minimum of integration’.¹⁷² That Neumann viewed this tension as especially problematic is outlined in a fascinating book proposal he wrote in 1936. In this document, *Law as an Integrating and Disintegrating Element in Modern Society. A Sociological Analysis of the Forces which Strengthen or Weaken Rational Elements in Law*, Neumann terms rational law ‘a general rule of law as opposed to arbitrary individual commands’. He proposes to trace its progressive degradation since the nineteenth century, and then to focus on twentieth-century ‘irrational’ legal thought. And the reason? — ‘What seems to me a possible solution is that irrational law prevails where the state is confronted with the question of the role of rational law in the “totalitarian state”’. The role of such rational law — integrative or disintegrative — is the central question.¹⁷³ Here, obviously, is the critical step towards *Behe-moth* — although problems with and commitments to the *Institut für Sozialforschung* meant that serious work on the book only began in the summer of 1939.¹⁷⁴ Further, as Intelmann recounts, Neumann’s work sparked an internal controversy within the Institute — because his theory of totalitarian

¹⁶⁹ Ernst Fraenkel, ‘Gedenkenrede auf Franz L. Neumann’, *Reformismus und Pluralismus* (Hamburg, 1963), p. 175, quoted in Intelmann, ‘Zur Biographie von Franz L. Neumann’, p. 24.

¹⁷⁰ Intelmann, ‘Zur Biographie von Franz L. Neumann’, pp. 25–36.

¹⁷¹ Tribe, ‘Capitalism’, p. 182. Cf. Franz L. Neumann [Leopold Franz], ‘On the Marxist Theory of the State’ (1935), *SD*, pp. 75–84. On the differences between Laski and Neumann, see Tribe, ‘Capitalism’, pp. 184 f.; Scheuerman, *Norm and Exception*, p. 138.

¹⁷² Tribe, ‘Capitalism’, p. 187.

¹⁷³ *Ibid.*

¹⁷⁴ Cf. Intelmann, ‘Zur Biographie von Franz L. Neumann’, pp. 36–41; Wiggerhaus, *Frankfurt School*, pp. 226–30; Jay, *Dialectical Imagination*, pp. 144–9.

monopoly capitalism was clearly at odds with Friedrich Pollock's predominant account of National Socialism as a form of *Staatskapitalismus*.¹⁷⁵

That National Socialism was a 'new' arrangement was crucial to Pollock's argument; it constituted a break with previous history. Neumann saw no such temporal caesura. Rather, for him there was a clear continuity between competitive and monopoly capitalism.¹⁷⁶ To Pollock, of course, it was the new coordinating role of the state that was truly dramatic — it had taken over the previous functions of the market. As a corollary of this, he described a fusion between state bureaucracy and capital from which the cadres of political leadership under a totalitarian variant of the more general trend towards state capitalism were formed. This totalitarian variant was National Socialism.¹⁷⁷ Both Neumann and Pollock nevertheless agreed that a Marxist analysis of the concentration and centralization of capital could explain the inherent trend towards monopolization,¹⁷⁸ and equally both agreed that capitalist crises had in no way been ameliorated or evaporated. Correlatively, state intervention had increased to an unprecedented degree.¹⁷⁹ Pollock suggested that private capitalism had been superseded, as the state now assumed important functions of the private capitalist, and that although capitalist institutions continued to play a significant role, this 'new' state form was not socialist.¹⁸⁰

Whereas Neumann saw National Socialism as a totalitarian form of monopoly capitalism, Pollock thought it had, by transforming 'quantity into quality', mutated into a state capitalism with the attendant central features of vast state planning buttressed by an all-powerful bureaucracy.¹⁸¹ Crucially, though, everybody 'who does not belong to this group is a mere object of

¹⁷⁵ See esp. Intelmann, *Franz L. Neumann*, pp. 245–51; Intelmann, 'Zur Biographie von Franz L. Neumann', p. 42; David Held, *An Introduction to Critical Theory* (Oxford (1980), 1990), p. 365; Jay, *Dialectical Imagination*, pp. 161 f.

¹⁷⁶ Bast, *Totalitärer Pluralismus*, Ch. 2, part III.

¹⁷⁷ Friedrich Pollock, 'Is National Socialism a New Order?', *Studies in Philosophy and Social Science*, 9 (1941), pp. 440–55.

¹⁷⁸ See Neumann, *The Rule of Law*, p. 266.

¹⁷⁹ Pollock, 'Is National Socialism a New Order?', p. 454. See also Held, *Critical Theory*, p. 57. Cf. James, *German Slump*, p. 123.

¹⁸⁰ Pollock, 'Is National Socialism a New Order?', p. 450, also quoted in Held, *Critical Theory*, p. 58.

¹⁸¹ Neumann's point that 'total' integration did not exist has been developed by many subsequent historians. See Mason, *Social Policy*, pp. 44, 71, 242 f., 273; Tim Mason, 'The Worker's Opposition in Nazi Germany', *History Workshop Journal*, 11 (1981), pp. 120–37; Ian Kershaw, *Popular Opinion and Political Dissent in the Third Reich* (Oxford (1983), 1991), esp. pp. 329 f.; cf. Ulrich Herbert, 'Labour and Extermination: Economic Interest and the Primacy of *Weltanschauung* in National Socialism' (1987), *Past and Present*, 138 (1993), pp. 144–95; Ulrich Herbert, '“The Real Mystery in Germany”: The German Working Class During the Nazi Dictatorship', in *Confronting the Nazi Past*, ed. Michael Burleigh (London, 1996), pp. 23–36.

domination'.¹⁸² Neumann was sharply critical of the account. He disputed it empirically, suggesting that the German state does not in fact own all capital. Theoretically, moreover, if state capitalism were true, it would mean that the worker's 'exploitation is political, and is no longer a result of his position in the productive process'. The new economy, therefore, would be 'one without economics'.¹⁸³ Neumann then continued this line of attack, suggesting that even if 'state capitalism' actually exists, the term itself is a *contradictio in adiecto*.¹⁸⁴

His most important criticism, succinctly relayed in a chapter title of *Behemoth*, relates to the idea of politics without, or indeed above, economics, for this tends towards a potentially lethal political fatalism. He cannot accept 'this profoundly pessimistic view', believing that 'the antagonisms of capitalism are operating in Germany on a higher and, therefore, more dangerous level, even if these antagonisms are covered up by a bureaucratic apparatus and by the ideology of the people's community'.¹⁸⁵ The rational character of the state under National Socialism, according to Pollock's analysis, is off the mark. It is, rather, precisely the 'weakness' of the contemporary state — the point he has taken from Schmitt — that ensures the continuation of 'market forces' rather than their transcendence by the state.¹⁸⁶ Moreover, Neumann wrote that 'rational law, after all, serves to protect the weak' and is therefore of little use to monopolists. Nor, it should be added, is it of any use to fascists.¹⁸⁷ Neumann also rejected, however, the famous distinction drawn by his old friend Fraenkel, between the 'Prerogative State' and 'Normative State', in his noted book *The Dual State*.¹⁸⁸ So what kind of position was he left with?

Neumann clearly adapted his analyses of the destructive tendencies of Weimar and extrapolated from them in an attempt to explain National Socialism. Indeed, as he wrote to Horkheimer in 1941, his original manuscript had three hundred machine-copied pages on the collapse of Weimar, which,

¹⁸² Friedrich Pollock, 'State Capitalism: Its Possibilities and Limitations', *Studies in Philosophy and Social Science*, 9 (1941), p. 201, quoted in Held, *Critical Theory*, p. 59.

¹⁸³ Neumann, *Behemoth*, p. 222.

¹⁸⁴ *Ibid.*, p. 224.

¹⁸⁵ *Ibid.*, p. 227. Cf. Tim Mason, 'The Primacy of Politics. Politics and Economics in National Socialist Germany' (1968), *Nazism, Fascism and the Working Class*, pp. 53–76; *Nazism*, ed. Noakes and Pridham, Vol. 2, pp. 233–58, esp. p. 238; Caplan, 'National Socialism and the State', pp. 105–9.

¹⁸⁶ Tribe, 'Capitalism', p. 191; Neumann, *Behemoth*, p. 523; Scheuerman, *Norm and Exception*, pp. 139 f.

¹⁸⁷ Neumann, *Behemoth*, p. 447.

¹⁸⁸ Ernst Fraenkel, *The Dual State* (Oxford, 1941). Cf. Neumann, *Behemoth*, p. 516, n. 63; Intelmann, *Franz L. Neumann*, pp. 273–8. On Fraenkel's debts to Schmitt, see Pasquale Pasquino, 'Politische Einheit, Demokratie und Pluralismus. Bemerkungen zu Carl Schmitt, Hermann Heller und Ernst Fraenkel', in *Der Soziale Rechtsstaat*, ed. J. Perels (Baden-Baden, 1984), esp. pp. 377–80.

unfortunately, he had to cut down to sixty. He was equally perturbed at not having another year to work on the text.¹⁸⁹ The fundamental problem with which he grappled, however, has already been mentioned — to what extent the irrational chaos of National Socialism is amenable to rational (legal) analysis. It is perhaps unsurprising that with these types of questions, and under the destructive impact of the *NS-Zeit*, Neumann should have chosen to call his text, with its attendant theological and apocalyptic connotations, *Behemoth*. But Neumann makes his analysis more concrete here by directly quoting Hobbes's use of *Behemoth* to designate the *Long Parliament* in England during the seventeenth century as a 'non-state, a chaos, a rule of lawlessness, disorder and anarchy'. He then applied the same criteria to the National Socialist 'system'.¹⁹⁰ Maybe it was also a reply to the use made of the mythical symbol of the *Leviathan* by Schmitt in his curious work of the previous year.¹⁹¹ Correlatively, perhaps his call for both the military and psychological defeat of *Behemoth* is an early example of his ability to 'go to war' alongside others of the Frankfurt school who would soon take up positions in the 'Oh So Social' Office of Strategic Services.¹⁹² Conjecture aside, what remains important here is the continuing critique in *Behemoth* of a 'deformalized' law, which forms the basis of his attack on Schmitt's account of, in particular, 'concrete order' thinking.¹⁹³

Rational Categories, Irrational Object

Neumann identified the nation as the integrating element in a system of competitive capitalism.¹⁹⁴ It is the nation that has, historically, 'justifie[d] a central coercive authority', namely, a central state.¹⁹⁵ The ideological cement supplied by the nation remains too under National Socialism, and much recent work presupposes it. The correlation of the state with sovereignty now, however, is wholly absent. In fact, the conflation of party and state typified early on in the *NS* regime is, Neumann concludes, 'self-contradictory', and their 'extremely equivocal relation' can only be 'legally' solved through the 'uni-

¹⁸⁹ Intelmann, 'Zur Biographie von Franz L. Neumann', p. 41.

¹⁹⁰ Neumann, *Behemoth*, p. xii. For an illuminating discussion of the terms, see Patricia Springborg, 'Hobbes's Biblical Beasts Leviathan and Behemoth', *Political Theory*, 23 (1995), pp. 353–75.

¹⁹¹ Cf. Carl Schmitt, *Leviathan*, pp. 7–10, 81–2, 85; Neumann, *Behemoth*, pp. 475 f.; Bast, *Totalitärer Pluralismus*, p. 301, n. 115.

¹⁹² See Barry Katz, 'The Criticism of Arms: The Frankfurt School Goes to War', *Journal of Modern History*, 59 (1987), pp. 439–78. For the quip about the OSS, see Francis Stonor Saunders, *Who Paid the Piper?* (London, 2000), p. 34 and *passim*.

¹⁹³ Maus, '1933 "Break"', pp. 206–12; Neumann, *Behemoth*, p. 448.

¹⁹⁴ Cf. Karl Renner, 'The Development of the National Idea' (1917), *Austro-Marxism*, ed. T. Bottomore and P. Goode (Oxford, 1978), pp. 123 f.

¹⁹⁵ Neumann, *Behemoth*, p. 100.

fyling' figure of the leader.¹⁹⁶ Yet 'legally', neither element — party or state — 'controls the other'. Because 'the party is not an organ of the state . . . its position cannot be defined in terms of our traditional jurisprudence'.¹⁹⁷ The nub of the argument, explicitly directed against Schmitt (among others), is that 'little light' is shed by the formula that party and state 'are different but not separate, combined but not merged'.¹⁹⁸ Here is the crucial analytical claim:

Our task will be to show that this is not quite true, that there is a *definite pattern of political and constitutional theory*, although this pattern *does not fit the rational categories of political thought as we know it*, whether liberal, absolutist, democratic or autocratic.¹⁹⁹

In an interesting continuation of his dialogue with Schmitt, Neumann's argument shows that rather than bringing forth the truly political 'total' state, National Socialism in fact undermines the real source of legal and political power, sovereignty, which is specific to the political sphere. Truly, this is another variation on Hegel's famous pronouncement that Germany is no longer a 'state'. As Thornhill suggests:

For Neumann, the very fact that the moment of genuine politics has been attenuated by technical and pluralist (private-legal) modes of coercion is responsible for the triumph of Hitler's party. Hitler's system, Neumann argues, is *not political at all*, but a mere sporadic refraction of economic interests. It has triumphed because of the *absence, not the primacy, of the political*.²⁰⁰

What Neumann suggests instead is that 'there is no realm of law in Germany, although there are thousands of technical rules that are calculable',²⁰¹ and these technical rules provide a key source of the order he seeks. Having rejected the theses of both Pollock and Fraenkel, on the grounds that the German economy is a mixture of a cartellized, monopolized system governed by a totalitarian 'state',²⁰² he is perhaps left with little else. It is a curious feature of his account that although the promise is to explicate the political and constitutional theory of National Socialism, a *Behemoth* impervious to rational (as Neumann understands the term) analysis, he nevertheless tries to 'fit' his own discussion into just precisely such a formulation. The combination of monopoly capitalism with a 'command' economy is good for business, but the obvious 'exceptionality' of the National Socialist 'state' is not a question of a different kind of economic substructure; in effect, capitalism is still

¹⁹⁶ *Ibid.*, pp. 82, 72.

¹⁹⁷ *Ibid.*, pp. 73–4.

¹⁹⁸ *Ibid.*, p. 74, quoting Schmitt, *Staat, Bewegung, Volk*, p. 21.

¹⁹⁹ *Ibid.* Emphasis added.

²⁰⁰ Thornhill, *Political Theory*, p. 127. Emphasis added.

²⁰¹ Neumann, *Behemoth*, p. 468.

²⁰² *Ibid.*, p. 261.

capitalism.²⁰³ As noted, he suggests a high degree of continuity between the Weimar and National Socialist periods in terms of the legal underpinning of economic practice, and it is therefore not surprising that the economy provides the other major source of 'order' in *Behemoth*. Such continuity existed largely because there was nothing akin to what we might call a National Socialist economics.

Although the drive towards war has often been seen as crucial to explaining the 'order' of National Socialism, Neumann's general point is that any conception of economic rationality, such as that which underpins an explicitly competitive-capitalist economy, is rendered secondary to the political 'rationality' now favoured.²⁰⁴ There are obvious wider links, which have been drawn in subsequent research, between such political calculations and the 'path' to genocide. But, as Keith Tribe formulates the problem, within the Third Reich 'economic ambition was regarded as a purely personal matter'.²⁰⁵ Indeed, as Richard Overy continues, the *Reichswerke* 'Hermann Göring' was just one example of 'German economic imperialism'.²⁰⁶ The problem then is one of expression:

we are confronted with a form of society in which the ruling groups control the rest of the population directly, without the mediation of that rational though coercive apparatus hitherto known as the state. This new social form is not yet fully realized, but the trend exists which defines the very essence of the regime.²⁰⁷

Furthermore, Neumann firmly rejected the alleged 'transcendence' of the state by the *Führerprinzip* outlined by various party lawyers, though the role of the leader for any kind of 'integration' was obviously crucial. Therefore:

we are not concerned with the *sophistry* of this new theory of transubstantiation implied by the identification of the Leader and the people, *but rather with the consequences which derive from such a theory*. This advanced National Socialist constitutional theory, although attacked even by Carl Schmitt, clearly admits that it is not the state which unifies political power but that there are three (in our view, four) co-existent political powers, the

²⁰³ Neumann, *Behemoth*, pp. 292, 361. Cf. Peter Hayes, *Industry and Ideology: IG Farben in the Nazi Era* (Cambridge, 1987), esp. pp. 213–18; Neil Gregor, *Daimler Benz in the Third Reich* (New Haven and London, 1999).

²⁰⁴ Cf. Peter Hayes, 'Polycracy and Policy in the Third Reich: The Case of the Economy', in *Re-evaluating the Third Reich*, ed. Childers and Caplan, pp. 197 ff., 203; Martin Broszat, *The Hitler State*, trans. J.W. Hiden (London (1969), 1981).

²⁰⁵ Tribe, 'Capitalism', p. 196. Cf. Gotz Äly, 'Final Solution'. *Nazi Population Policy and the Murder of the European Jews*, trans. B. Cooper and A. Brown (London (1995), 1999), p. 259.

²⁰⁶ Richard Overy, 'The Reichswerke "Hermann Göring"'. A Study in German Economic Imperialism', in R. Overy, *War and Economy in the Third Reich* (Oxford, 1995), pp. 164–5.

²⁰⁷ Neumann, *Behemoth*, p. 470.

unification of which is not institutionalized but only personalized. It may be readily admitted that in constitutional law, as in any other field, the theories of the people's community and leadership are a mere shield covering the powers of the enormously swollen bureaucratic machines. But at least a grain of truth may be contained in these theories; to wit, that it is difficult to give the name state to four groups entering into a bargain. In fact, except for the charismatic power of the Leader, there is no authority that co-ordinates the four powers, no place where the compromise between them can be put on a universal valid basis.²⁰⁸

Thus, 'German constitutional life is characterised by its utter shapelessness . . . [and] it follows that from our point of view it is doubtful whether Germany can be called a state'.²⁰⁹ Neumann clearly thinks the regime is rife with contradictions, between the *Führer* and the high-level bureaucratic machines — in fact between the four principal political powers he has identified — and also, importantly, between rulers and ruled. He sees therefore the necessity of the destruction of *Behemoth*, but also recognizes the possibility for 'conscious political action of the oppressed masses, which . . . [could] utilise the breaks in the system'.²¹⁰ Nevertheless, while there is a fairly clear presentation of the problem linked to a detailed analysis of the present, there is no clear picture of what the 'fully realised' picture of the 'new social form' might look like. Indeed, whilst Neumann posits the 'problem' of order or integration as a crucial feature of modern democracies, his own account of National Socialism remains somewhat incomplete. This is not simply due to the enormity of the subject matter. By tying sovereignty and state so closely together, he actually remains incapable of theorizing anything that does not conform to his pre-established norms of social and political theory. He remains tied, in other words, to his understanding that the state is the highest form of sovereignty, and that sovereignty contains elements of both might and right. The 'new social form' that Neumann sees coming into existence in Germany clearly is not a state in this sense, and whilst it possesses all the coercive power of such a body, it is neither sovereign nor legitimate in the terms that Neumann understands.²¹¹ Therefore, if National Socialism was a chaotic 'non-state', could he do anything other than provide a detailed contextual description of it?

²⁰⁸ *Ibid.*, pp. 469 f. Emphasis added. The Schmitt reference refers to his 'Der Reichsbegriff im Völkerrecht', *Deutsches Recht* (1939), pp. 341–4. Cf. Peter Stirk, 'Carl Schmitt's *Völkerrechtliche Grossraumordnung*', *History of Political Thought*, XX (1999), pp. 357–74, pp. 367 f.

²⁰⁹ Neumann, *Behemoth*, p. 522. On the new power of retroactive legislation, Neumann cites Constant approvingly: 'retroaction is the most evil assault which the law can permit . . . a retroactive law is no law at all'. See Neumann, *The Rule of Law*, p. 222; and also Neumann, 'The Change in the Function of Law in Modern Society', *DAS*, p. 36.

²¹⁰ Neumann, *Behemoth*, p. 476.

²¹¹ *Ibid.*, p. 470.

Many present-day accounts of the *NS-Zeit* have also illustrated the importance of bureaucratic efficiency and technical procedures for economic restructuring. Indeed, some of the most provocative and controversial recent German work has outlined the often eager complicity of various academics and influential political decision-makers in particular in adapting their 'scientific' procedures to fit the 'new economic order'.²¹² This kind of research could actually square the circle, so to speak, of Neumann's account. The overall ascription of rationality to, in particular, the 'planning elite', nevertheless runs against the grain of his basic understanding.²¹³ There is no space here to go into detail about the relationship between Neumann's writings and discussions about the Third Reich and 'modernization'.²¹⁴ It will have to suffice to observe that for contemporary research, the problems of systemic order and the 'rational' reproduction of an irrational regime remain paramount.

Certainly, though, one of the most 'basic and highly provocative argument[s]' within *Behemoth* is that 'some version of an identifiably modern state apparatus controlling the exercise of coercion remains a civilizational achievement worth defending'.²¹⁵ It is precisely the universal fulfilment of the rule of law, as opposed to its curtailing, that is to say, the completion of legal rationalization as a basis for meaningful social change, which Neumann has attempted to argue for in a complex mixture of sources. Such a mixture has led Thornhill to characterize Neumann as an 'anti-Schmittian Schmittian . . . [and] simultaneously . . . an anti-Marxist Marxist'.²¹⁶ He is perhaps right. Perhaps the fact that Neumann had trouble explaining Nazism through the use of his categories should not be that surprising. However, if 'what is modern about National Socialism is the deliberate reconstruction of a social and political order by the application of the modern instrumentaria of power and domination',²¹⁷ then Neumann did at the very least ask the right questions. He obviously also went a long way towards providing us with answers, indeed answers on which we still rely. The problems faced by Neumann are the same as those facing researchers today who, as they delve deeper into the structures of the Third Reich, confront those 'modern' aspects of the regime, and —

²¹² Gotz Äly, 'The Planning Intelligentsia and the "Final Solution"', in *Confronting the Nazi Past*, ed. Burleigh, p. 153. Cf. Norbert Frei, 'Wie modern war der Nationalsozialismus?', *Geschichte und Gesellschaft*, 19 (1993), pp. 367–87, esp. pp. 385 ff.; Michael Burleigh, 'A "Political Economy of the Final Solution"? Reflections on Modernity, Historians and the Holocaust', in M. Burleigh, *Ethics and Extermination* (Cambridge, 1997), pp. 170–9.

²¹³ See Herbert, 'Labour and Extermination', pp. 173 ff.

²¹⁴ See Tribe, 'Capitalism', *passim*.

²¹⁵ Scheuerman, *Norm and Exception*, p. 196.

²¹⁶ Thornhill, *Political Theory*, p. 115. Cf. Neumann, 'The Change in the Function of Law in Modern Society', *DAS*, pp. 40 f.; Caplan, *Government Without Administration*, p. 199.

²¹⁷ Tribe, 'Capitalism', p. 199.

particularly now — ask awkward questions about the impact of the *NS-Zeit* on post-war German economy and society.²¹⁸

Re-Reading *Behemoth*

That Neumann's thought during the period under consideration in this paper owes so much to Schmitt's categories casts the well-known portrait of Schmitt in *Behemoth* as the clearest representative of Nazi ideology in a different light. The key point for Neumann is that under National Socialism the 'state' *per se* has ceased to exist, and without the state there is simply a decisionistic, situation-specific, deformed or dematerialized law that owes little, if anything, to the general rule of law he seeks to defend. As a representative of such decisionistic thought, Schmitt has become not simply authoritarian, but also irrational, and he can therefore legitimately be viewed as a Nazi ideologue. Whether there was indeed a 'break' in Schmitt's thought in 1933 is itself a vexed question, and depends on whether one views his Weimar writings as a quantifiable progression towards an overtly fascist politics. Neumann's observations in both the quoted letter that forms the epigraph to this paper, and most of the work referred to here, suggests that *he* did not take such a view. This is clearly a difficult question. This is no reason to ignore it, however, and ignored it often has been.

By reconstructing Franz Neumann's 'route' to *Behemoth*, I hope to have shown that it is much too simple just to suggest that his political writings, at least before the end of the war, are determined by the dictates of a clearly defined social-democratic reformism. Although there is, of course, an element of truth in such a broad general characterization, this neat ideological label not only hides important differences within social-democratic politics itself, but also in this case ignores a, perhaps *the*, major protagonist in Neumann's political writings before the end of the war.²¹⁹ Equally, there is also a wider point to be made here. In their related concerns about the nature of the modern state and questions of political-legal rationality and legitimacy, the works of Weber, Schmitt and Neumann clearly touch on themes that go beyond the confines of Weimar democracy and National Socialist

²¹⁸ For one recent overview, Martin Urban, 'Die Hintermänner der Mörder', *Süddeutsche Zeitung*, 24 October 2000, p. V2/13.

²¹⁹ Neumann's views on Schmitt obviously changed. His last, unfinished work contains an important reference. See Franz Neumann, 'Notes on the Theory of Dictatorship' (1954), *DAS*, pp. 233–56: 'Strange as it may seem, we do not possess any systematic study of dictatorship', *ibid.*, p. 233. His note, p. 254, n. 1, states that Schmitt's work *Die Diktatur* 'is the most significant exception, *but his analysis is not acceptable*'. Emphasis added. Neumann tragically died in a car crash in 1954 before he could develop a more 'acceptable' account. On the post-war relations between Neumann and Schmitt, see Michael Salter, 'Neo-Fascist Legal Theory on Trial: An Interpretation of Carl Schmitt's Defence at Nuremberg from the Perspective of Franz Neumann's Critical Theory of Law', *Res Publica*, 5 (1999), pp. 161–94.

dictatorship. Indeed, the current resurgence of interest in the work of Carl Schmitt, for example, illustrates a much broader and renewed concern with the nature of the political and the general problems of political association, themes that have been absent from much recent liberal political philosophy.²²⁰ The aim of this paper, however, has been somewhat more modest. I have attempted to trace, perhaps somewhat unfashionably, the ‘influence’ of Weber and Schmitt, though in particular the influence of Schmitt, on the construction of Franz Neumann’s most famous and lasting work.²²¹ In so doing, I hope that a deeper appreciation of the merits, and shortcomings, of this essential book is more easily achieved.

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²²⁰ David Runciman, ‘History of Political Thought: The State of the Discipline’, *British Journal of Politics and International Relations*, 3 (2001), pp. 84–104, pp. 97, 100.

²²¹ See Francis Oakley, ‘“Anxieties of Influence”: Skinner, Figgis, Conciliarism and Early-Modern Constitutionalism’, *Past and Present*, 151 (1996), pp. 60–110, for an elegant defence of the utility of the concept of ‘influence’ in the history of political thought.